Table of Authorities — Consolidated

Theft, assessment, section 126 and section 135 summaries only · 17 October 2026 · 1364 of 3826 summaries · 300 authorities · 585 citations, grouped by forum. Proposition and treatment shown verbatim, per citation.

A summary is in this table when its JSON, after its own case id is removed, contains **theft** (not merely anti-theft), **assessment**, or the whole numbers **126** or **135**. Match counts, a summary may fall under more than one: theft 693, assessment 1142, 126 304, 135 319. 265 of the included summaries record an authority. Variants of the same decision are one block. The unfiltered consolidated table is kept.

Supreme Court of India (177) **Allahabad High Court** (88) **Other High Courts** (16) **Statutes, Tribunals, Treatises & Other** (19)

Supreme Court of India 177 authorities · 247 citations

M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P. and others

AIR 1979 SC 621 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Relied on	Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.	Quoted within the Amrawati Devi extract and relied on: absent intimation of the Clause 5.6(c)(iii) option, the consumer cannot be deemed to have waived it. 6 (quoting SC para 6)
SCJ-162 Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Relied on	Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.	Relied on and quoted (para 6 of the SC judgment) to reject the plea of waiver against the consumer. 9
SCJ-2853 M/S Nageshwar Papers Limited v. Dakshinanchal Vidyut Vitran Nigam Limited and Another	Court	Relied on	Waiver means the abandonment of a right; it must be an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law.	Relied on (within the reproduced Amrawati Devi passage) for the proposition that there can be no waiver of a right without knowledge of it. p. 2

M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra

AIR 2021 SC 1918 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-539 Syed Avesh Ahmad v. State of U.P. and Another	Court	Followed	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	
SCJ-2556 Islam Khan v. State of U.P. — s.482 to quash electricity-theft trial withdrawn	3	Referred		

M/s Popcorn Entertainment v. City Industrial Development Corporation

2007 (4) JT (SC) 70 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-040 Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.	Court	Referred	A writ may be entertained despite an alternative remedy where the action is without jurisdiction, or in breach of natural justice, or violates fundamental rights.	Referred (through Ashok Kumar) for the three exceptions, held inapplicable here. unnumbered order
SCJ-158 Ashok Kumar & Ors. v. State of U.P. & Ors.	Court	Referred	On when a writ petition will be entertained despite the availability of an alternative statutory remedy.	Referred on the alternative-remedy question.

M/s Prem Cottex v. Uttar Haryana Bijli Vitran Nigam Ltd.

(2021) 20 SCC 200 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-283 M/S Om Food Manufacturing Center v. State of U.P. & 2 Others	Respondent	Referred	Rahamatullah Khan was distinguished on facts; the licensee was still prevented from disconnecting and left to other remedies.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3326 Munna Lal v. State of U.P. and 5 Others	Petitioner	Referred	The petitioner relied on it for the contention that electricity dues for a period beyond two years are not recoverable under Section 56(2). The Court rejected that contention where the dues were continuously shown as recoverable arrears, and did not discuss the judgment. The report is printed as M/S Prem Cottex vs. Uttar Harayana Bijli Vitran Nigam Limited.	

Shri Sitaram Sugar Company Ltd. & Anr. v. Union of India & Ors.

(1990) 3 SCC 223 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	Any act of the repository of power is open to challenge if in conflict with the Constitution, the governing Act, or general principles of law, or so arbitrary/unreasonable that no fair-minded authority could have made it.	Held inapplicable to justify bypassing the alternative remedy on the facts. unnumbered order

A.I.S.B. Officers Federation & Others v. Union of India & Others

JT 1996 (8) SC 550 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Relied on	A petitioner cannot raise mala fide allegations against persons who have not been impleaded as respondents.	Relied on to the same effect. para 27

A.K. Kraipak & Ors. v. Union of India and others

AIR 1970 SC 150 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-644 M/S Mahavir Iron Foundry And Another v. Dakshinanchal Vidyut Vitran Nigam Ltd. And Others	Court	Applied	Principles of natural justice supplement the statute; an opportunity of hearing is required even where the statute is silent.	Applied with Ashok Kumar for the holding that no show-cause before the provisional assessment violated natural justice. unnumbered

A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhwani

AIR 1961 SC 1506 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Referred	The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition and grant relief notwithstanding an adequate alternative remedy.	Noticed within the quoted Whirlpool extract. 18
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Court	Referred	The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition notwithstanding an adequate alternative remedy.	Noticed within the quoted Whirlpool extract.

Additional District Magistrate (Rev.), Delhi Admn. v. Siri Ram

(2000) 5 SCC 451 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Conferment of rule-making power does not enable the delegate to make rules travelling beyond, inconsistent with, or repugnant to the enabling Act.	Followed.

Aligarh Muslim University v. Mansoor Ali Khan

AIR 2000 SC 2783 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Respondent	Referred	Following S.L. Kapoor v. Jagmohan, where on admitted/indisputable facts only one conclusion is possible, breach of natural justice need not vitiate the order (a narrow exception).	Referred (respondent's line); the exception held inapplicable. 63

Arnesh Kumar v. State of Bihar

(2014) 8 SCC 273 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-340 Anuradha v. State of U.P. & 4 Others	Court	Followed	Police officers are not to arrest accused unnecessarily, nor Magistrates to authorise detention casually, for offences punishable with imprisonment of seven years or less (with or without fine); notice of appearance under Section 41-A Cr.P.C. is to be served, and arrest requires satisfaction of the Section 41 parameters with recorded reasons.	Quoted at length and applied to this Section 135 FIR: the petitioner's liberty is protected if notice is given under Section 35 BNSS; arrest only on credible material after recording reasons. 4-7

Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited v. Rahamatullah Khan alias Rahamjulla

(2020) 4 SCC 650 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-283 M/S Om Food Manufacturing Center v. State of U.P. & 2 Others	Court	Applied	Section 56(2) does not preclude a supplementary demand after two years in case of mistake, but it does not empower disconnection to recover that demand.	
SCJ-3326 Munna Lal v. State of U.P. and 5 Others	Court	Relied on	The aspect that dues continuously shown as recoverable arrears of charges for electricity supplied are not barred by time under Section 56(2) was considered in this judgment. The High Court relied on that consideration in rejecting the time-bar plea and did not set out the ratio.	

Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty

(1998) 9 SCC 138 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Court	Followed	Even orders which may not be strictly legal become final and binding between the parties if they are not challenged before the superior courts; a dispute that has attained finality cannot be reopened.	

Bachhaj Nahar v. Nilima Mandal

(2008) 17 SCC 491 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Cited by the petitioner; no ratio extracted.	

Balram Prasad v. Kunal Saha & Ors.

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others	Court	Relied on	The court is sceptical of a strait-jacket multiplier method and may deviate from it to avoid over- or under-compensation, determining just, fair and reasonable compensation on the facts.	Relied on (¶124 quoted) for a flexible, just-compensation approach. unnumbered order

Balwant Spinning Mills Ltd. v. U.P. State Electricity Board

(1997) 6 SCC 740 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-262 I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others	Court	Followed	A meter-correctness dispute is decided by the Electrical Inspector, who may assess consumption for the preceding six months where the meter has ceased to be correct.	Followed on the scope of s.26(6). 14

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Referred	Named only as a case relied on in Gautam Motors; no ratio extracted.	

Bar Council of India v. Union of India

(2012) 8 SCC 243 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others	Court	Relied on	Chapter VI-A of the LSA Act, 1987 validly confers on Permanent Lok Adalats jurisdiction to conciliate and, failing settlement, adjudicate disputes concerning public utility services (including supply of power); not violative of Article 14 or the rule of law.	Relied on to sustain the Permanent Lok Adalat's jurisdiction and its validity. unnumbered order
SCJ-159 Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr.	Respondent	Referred	On the nature and scope of the Legal Services Authorities / Lok Adalat framework.	Cited by the respondent; not found to save the PLA's adjudicatory jurisdiction. 9
SCJ-2214 Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam Ltd. & Another v. State of U.P. & Another	Court	Relied on	The vires of the Chapter VI-A provisions of the Legal Services Authorities Act, 1987 (constituting Permanent Lok Adalats) were upheld.	Relied on 7

Barkat Ali v. Badri Narain

AIR 2008 SC 1272 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3177 Mahendra Pratap Singh v. State of U.P. & 8 Others	Court	Applied	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge.	

Bharat Aluminium Co. v. Kaiser Aluminium Technical Services Inc.

2012 (9) SCC 552 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3258 Tarun Kumar Pathak v. State of U.P. And 4 Others	Court	Followed	Quoted, as applying Madan Gopal Rungta, for the observation that a right to obtain an interlocutory injunction is not a cause of action and cannot stand on its own.	

Bhavnagar University v. Palitana Sugar Mills (P) Ltd.

(2003) 2 SCC 111 : AIR 2003 SC 511 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-247 M/s. Citi Hotel v. Commissioner, Lucknow Division, Lucknow & Ors.	Court	Referred	A little difference in facts or additional facts may make a lot of difference in the precedential value of a decision.	Referred, to explain why J.M.D. Alloys (on materially different facts) was not applicable. 14

Bihar State Electricity Board v. Parmeshwar Kumar Agarwala

(1996) 4 SCC 686 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Petitioner	Referred	The Supply Code / conditions of supply have statutory flavour and are to be strictly followed by the parties.	Referred for the statutory character of the Supply Code. 49

Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P) Ltd.

(2005) 4 SCC 327 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-262 I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others	Respondent	Followed	Section 26(6) is attracted only when the meter is not correct; it does not apply to fraud/trick/tampering, and a licensee who removes the meter without a reference loses the material evidence and cannot revise the demand.	Followed and applied to the near-identical situation of a removed meter and an unraised dispute. 17, 23

Brahm Dutt v. Union of India

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Referred	Where a body performs both advisory/regulatory and adjudicatory functions, it may be appropriate (though a matter for legislative wisdom) to create two separate bodies.	Noted but left to legislative discretion; not directed.

Calcutta Discount Co. Ltd v. ITO, Companies Distt.

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Court	Referred	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition or certiorari.	Noticed within the quoted Whirlpool extract.

Calcutta Discount Co. Ltd. v. Income Tax Officer, Companies Distt. I

AIR 1961 SC 372 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Referred	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition/certiorari notwithstanding the executive character of the act.	Noticed within the quoted Whirlpool extract.

Canara Bank v. G.S. Jayarama

2022 SCC OnLine SC 656 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2214 Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam Ltd. & Another v. State of U.P. & Another	Court	Followed	A Permanent Lok Adalat's powers are wider than a Lok Adalat's; conciliation proceedings under Section 22-C are mandatory; and it may decide a dispute on merits (so long as the dispute does not relate to an offence) only after the proposed terms of settlement are not agreed to or are rejected.	Followed 14-15

Canara Bank v. P.R.N. Upadhyaya & Others

(1998) 6 SCC 526 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)	Court	Followed	A Banking Ombudsman (analogous statutory scheme) is bound by governing circulars/directions and cannot issue directions in ignorance of them.	Applied by analogy to confirm the Electricity Ombudsman's award must conform to the governing Supply Code.

Carborundum Universal Ltd. v. CBDT

1989 Supp (2) SCC 462 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Respondent	Referred	Where a statutory provision does not exclude natural justice, an opportunity of being heard is to be assumed, especially in quasi-judicial proceedings.	Referred in the natural-justice discussion. 63

Cauvery Water Disputes Tribunal, In re

1993 Supp (1) SCC 96(2) : AIR 1992 SC 22 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-255 M/s. Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	A legislature may remove the basis of a court's decision but cannot direct the instrumentalities of the State to disobey or disregard a court's decision.	Distinguished: Clause 4.49 does not affect the consequence of the court's interim stay, the bank guarantee arising only from the consumer's own load-enhancement application. 33-34

Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors.

(2009) 2 SCC 727 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-069 M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	Followed as the leading authority for the s.126/s.127 characterisation of theft assessments. para 6
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Petitioner	Followed	In a theft-of-electricity case, the Supreme Court noted the right of appeal under s.127 of the Electricity Act, 2003.	Cited for the general availability of s.127 appeal in theft-adjacent assessment cases.
SCJ-3107 M/S Barnala Steel Industries Ltd. v. State of U.P. & Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	
SCJ-3108 M/S Prem Steels (Pvt.) Ltd. v. State of U.P. and Others	Petitioner	Followed	In the matter of theft of electrical energy the assessment is referable to Section 126 and appeal is to be filed under Section 127 (paras 4 and 6).	
SCJ-3109 M/S M.Q. Steels (Pvt.) Ltd. v. State of U.P. & Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	
SCJ-3110 M/S Vehlna Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3111 M/S Amba Steels (A Unit Of K.K.Steel Products Ltd.) v. State of U.P. And Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	
SCJ-3112 M/S R.A. Castings (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	
SCJ-3113 M/S Avadh Alloys Pvt. Ltd. v. State of U.P. & Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	
SCJ-3114 M/S Aswad Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.	

Chandigarh Administration v. Jagjit Singh

1995 (1) SCC 745; AIR 1995 SC 705 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)	Court	Followed	The mere fact an authority passed a particular (possibly illegal) order for another similarly-situated person cannot found a discrimination-based claim to have that illegality repeated; Article 14 does not envisage negative equality.	Applied to reject the discrimination plea based on the Nitin Spat precedent.

Chandra Kishore Jha v. Mahabir Prasad

JT 1999 (7) SC 256 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-170 Heera Lal v. State of U.P. & Others	Petitioner	Referred	Where a statute provides for a thing to be done in a particular manner, it must be done in that manner and no other.	Proposition accepted, but held to support relegating the objection to the electricity authority, not the Tehsildar. (order)

Chandroji Rao v. CIT

1970 (2) SCC 23 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Relied on	A marginal heading cannot control the interpretation of a statutory provision.	Relied on to the same effect. para 41

CIT v. Dhadi Sahu

1994 Supp (1) SCC 257 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	A law changing the forum does not affect pending actions unless a contrary intention is clearly shown; the forum of appeal is a vested right, not pure procedure.	Referred (followed within Sharadamma). 21

CIT, Bangalore v. R. Sharadamma

(1996) 8 SCC 388 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Relied on	Where an authority is validly seized of a matter on a reference, it does not lose jurisdiction on a later amendment; change of forum is not mere procedure but a vested right.	Relied on. 21

Collector, Distt. Gwalior & Anr. v. Cine Exhibitors P. Ltd. & Anr.

AIR 2012 SC 1239 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Referred	(Follows and applies S. Sethuraman on jurisdiction not being conferrable by consent.)	Referred as the recent Supreme Court reaffirmation of S. Sethuraman. para 27

D.P. Kesari v. Board of Directors of Allahabad Agricultural Institute

(2009) 12 SCC 272 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Cited by the petitioner; no ratio extracted.	

Doypack Systems Pvt. Ltd. v. Union of India

(1988) 2 SCC 299 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-158 Ashok Kumar & Ors. v. State of U.P. & Ors.	Court	Referred	Principles of statutory interpretation, including reading provisions in their context to give effect to legislative intent.	Referred on construction of the Companies Act / status provisions.

Dr. Arun Kumar v. Nagar Nigam, Bareilly

2017 (2) ADJ 638 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-278 Satish Kumar Bharti alias Chhotu v. State of U.P. & 2 Others	Court	Followed	Where a statute requires a thing to be done in a particular manner, doing it otherwise is void and illegal.	Applied, as in Varun Kumar Yadav, to hold a late s.135 FIR void. 10

Dr. Mahachandra Prasad Singh v. Chairman, Bihar Legislative Council & Ors.

(2004) 8 SCC 747 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	A delegate's power under delegated legislation is strictly ancillary; it does not enable extension of the enactment's scope, and cannot be used to widen the Act's purposes or depart from its ends.	Followed.

Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd.

Writ Petition (Crl.) No. 103 of 2013 (SC, 25-06-2013) · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-223 Virendra Kumar Mittal v. U.P. Power Corporation Ltd. & 2 Others	Petitioner	Relied on	A consumer's right to a new electricity connection on deposit of the estimate is independent of a disputed/undetermined theft-assessment liability, which cannot be a ground to refuse the connection.	Relied on to hold that the theft-assessment amount could not be demanded as a precondition to the new connection. (judgment)

Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P.

(2004) 13 SCC 665 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-164 Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others	Petitioner	Relied on	Where the High Court has entertained a writ petition in which pleadings are complete, it ought to decide the case on merits rather than relegate the parties to the alternative remedy.	Relied on to decide the writ on merits despite the s.127 appeal. 14-15

East Coast Railway & Anr. v. Mahadev Appa Rao & Ors.

2010 (7) SCC 678 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	Whether an enquiry/verification was necessary before an adverse order depends on the facts; the authority must be alive to the material on which it purports to decide, not act mechanically or under impulse.	Held inapplicable — no ground or demonstration that the assessment was made mechanically or without considering the material. unnumbered order

Electronics Corporation of India Ltd. v. Secretary, Revenue Department, Govt of A.P.

(1999) 4 SCC 458 : AIR 1999 SC 1734 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-158 Ashok Kumar & Ors. v. State of U.P. & Ors.	Court	Relied on	On the tests for treating a Government company/corporation as an instrumentality or 'State'.	Relied on in determining DVVNL's status as a Government company/instrumentality.

Energy Watchdog v. Central Electricity Regulatory Commission

(2017) 14 SCC 80 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-110 Ramayana Ispat Pvt. Ltd. & Anr. v. State of Rajasthan & Ors. (with connected appeals)	Petitioner	Distinguished	Whenever generation or supply of electricity is inter-State, the Central Commission is the appropriate regulator; whenever intra-State, the State Commission is — jurisdiction turns on whether generation and sale occurs within one State or more than one State.	Relied on by the appellants for CERC's exclusive inter-state jurisdiction, but distinguished/held not to displace RERC's jurisdiction over the intra-state delivery/consumption aspects of open access.

Executive Engineer, Electricity Distribution Division-II v. Chairman, Permanent Lok Adalat

(2015) 113 ALR 603 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-159 Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr.	Respondent	Referred	On the jurisdiction of a Permanent Lok Adalat in electricity disputes.	Cited by the respondent; noted. 9

Executive Engineer, Southern Electricity Supply Company of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill

(2012) 2 SCC 108 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-042 West Bengal State Electricity Distribution Co. Ltd. (WBSEDCL) v. M/s Orion Metal Pvt. Ltd.	Court	Followed	'Unauthorised use of electricity' is not restricted to the Explanation's clauses but has a wider meaning covering all misuse/malpractice; excess load beyond the sanctioned/contracted load is unauthorised use under Explanation (b)(iv).	Followed — theft held to be a subset of the wider 'unauthorised use' concept established in Seetaram Rice Mill. para 12
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Court	Followed	The High Court may entertain a writ raising a jurisdictional challenge to a notice/provisional assessment but must remand rather than decide the assessment itself; it should normally decline to interfere with a final assessment order under Article 226.	Applied as the governing precedent to dismiss the writ and relegate the petitioner to the s.127 appeal. unnumbered order
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Petitioner	Distinguished	Sections 126 and 135 of the 2003 Act operate in different, distinct fields with no common premise in law — s.126 covers unauthorised use even absent dishonest intent (a civil-law remedy without mens rea), while s.135 requires dishonest intent and falls within criminal jurisprudence; s.126 is intended to cover cases 'over and above' those specifically covered by s.135.	Distinguished from the petitioner's reading — clarified that the 'different fields' holding does not mean s.126 assessment is barred wherever s.135 also applies; rather, both provisions can and do operate concurrently on overlapping conduct.
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Sections 126-127 of the Electricity Act, 2003 constitute a complete code; 'unauthorised use of electricity' under Explanation (b) is not exhaustively defined by its five sub-clauses and must be purposively construed to cover excess-load consumption regardless of tariff-category change; overdrawal is prejudicial to the public at large as it threatens the entire supply system.	Extensively followed and applied as the controlling precedent; its paras 18, 37, 50, 61, 67, and 72 quoted and relied upon at length.

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-163 Jai Laxmi Cement Company Ltd. v. State of U.P. & 3 Others	Petitioner	Relied on	Only a final order of assessment under s.126(3) is appealable under s.127; a s.126(2) provisional assessment is not, and the High Court should normally decline to interfere with a provisional assessment under Article 226, entertaining it only on true jurisdictional grounds and then remitting the merits to the assessing authority.	Relied on and quoted (paras 79-82, 87) to decline interference at the provisional stage. quoted 79-87
SCJ-380 Satyam Shukla v. State of U.P. and 3 Others	Petitioner	Followed	Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ against a provisional assessment on a jurisdictional issue, but must then remand merits to the assessing officer and not determine the demand.	Followed as binding. Applied to set aside a provisional assessment not based on the assessing officer's own inspection, and to entertain the writ then remand rather than decide quantum.
SCJ-2198 M/s Rubi Ice Factory v. Dakshinanchal Vidyut Vitaran Nigam Ltd. & Another	Court	Relied on	The High Court should normally decline to interfere, in exercise of Article 226 jurisdiction, with a final order of assessment passed by the assessing officer under Section 126(3) of the Electricity Act, 2003, where a statutory appeal under Section 127 is available.	Relied on judgment of 9.3.2017
SCJ-2224 Hasimuddin v. State of U.P. & 5 Others	Court	Relied on	The High Court should normally decline to interfere under Article 226 with a final Section 126(3) assessment passed by the Assessing Officer where a statutory Section 127 appeal is available; the Act distinguishes unauthorised use (Section 126) from theft (Section 135).	Relied on ¶ 8
SCJ-2636 Sanjay Singh v. State of U.P. & Others	Court	Relied on	The High Court should normally decline to interfere under Article 226 with a final order of assessment passed by the Assessing Officer under Section 126(3); the aggrieved person should pursue the statutory appeal under Section 127.	Relied on to hold that, an alternative remedy under Section 127 being available, the writ should not be entertained. p. 7

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3293 Vishal Chawla v. Consumer Grievance Redressal Forum, Purvanchal Vidyut Vitran Nigam Ltd. & Another	Petitioner	Referred	Cited by the petitioner as a judgment of the Supreme Court. Reliance was placed on paragraphs 15, 16, 17 and 22 for a distinction between Sections 126 and 135, and for the submission that the licensee's authorities were not attracted because the case was one of theft. Those paragraphs are not quoted, and this Court did not apply them.	

F.N. Roy v. Collector of Customs, Calcutta

AIR 1957 SC 648 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Respondent	Referred	There is no rule of natural justice that at every stage a person is entitled to a personal hearing.	Referred (respondent's line) but held not to displace the personal-hearing requirement here. 63

Federation of Railway Officers Association v. Union of India

AIR 2003 SC 1344 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Relied on	Allegations of mala fide cannot be vaguely made and must be specific; the official said to be involved must be made a party to meet the allegations.	Relied on to the same effect. para 28

Ferro Alloys Corporation Ltd. v. A.P. State Electricity Board & Anr.

1993 Supp (4) SCC 136 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1979 M/S K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.	Court	Relied on	The true nature of the transaction is one of advance payment of charges for consumption of electricity estimated for a period of approximately three months, to be kept made good from month to month.	Relied on (through Tehri Girders) for the character of additional security as advance payment rather than a debt. 24.2.2011

Garikapati Veeraya v. N. Subbiah Choudhry

AIR 1957 SC 540 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Followed	Leading five-principle statement: the right of appeal is a vested substantive right governed by the law at the institution of the suit/proceeding, preserved through all appellate stages, and can be taken away only by express enactment or necessary intendment.	Followed as the governing authority. 17

General Officer Commanding-in-Chief & Anr. v. Dr. Subhash Chandra Yadav & Anr.

(1988) 2 SCC 351 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	For a rule to have statutory effect, it must (1) conform to the provisions of the statute under which it is framed, and (2) come within the scope of the rule-making power; failing either, the rule is void.	Followed.

GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.

(2002) 125 Taxman 963 (SC) · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1060 M/s Rukmani Ferro Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Respondent	Referred	A challenge to a notice for (provisional) assessment is premature; the assessee should file its reply / objection rather than rush to the writ court.	Referred as the respondent's authority; the Court's disposition relegating the consumer to the objection process is consistent with this approach. p. 4

Global Energy Limited & Anr. v. Central Electricity Regulatory Commission

(2009) 15 SCC 570 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	A general 'for carrying out the purpose of the Act' rule-making delegation cannot be exercised to bring into existence substantive rights, obligations or disabilities not contemplated by the parent Act.	Followed as directly applicable in the electricity-regulatory context.

Gopaldas Udhavdas Ahuja and another v. Union of India and others

(2004) 7 SCC 33 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2227 Shafi Ahmad v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Petitioner	Distinguished	Cited for the effect of an acquittal on the licensee's demand/assessment and the consumer's entitlement to restoration.	Distinguished ¶ 7, 9

Government of Maharashtra v. Deokar's Distillery

(2003) 5 SCC 669 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3177 Mahendra Pratap Singh v. State of U.P. & 8 Others	Court	Applied	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge — applied here so that the recovery certificate could not be challenged without a challenge to the bill. The order cites 'Government of Maharastra vs. Deokar's Distellery; (2003) SCC 669'; volume completed from the standard report of the same cause title.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3258 Tarun Kumar Pathak v. State of U.P. And 4 Others	Respondent	Followed	Cited for the proposition that a writ to quash a consequential order is not maintainable. Applied so that the 05.08.2022 recovery order, which only specified the method of recovering the loss already directed in the 06.07.2021 punishment, could not be independently challenged while the statutory appeal against that punishment was pending.	

Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd. (GJ-II)

(2008) 4 SCC 755 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-026 Executive Engineer, Electricity Urban Distribution Division v. The Electricity Ombudsman & 2 Others	Court	Relied on	Section 86(1)(f) of the Electricity Act, 2003 is a special provision for adjudication of disputes between a licensee and a generating company and overrides the general Section 11 of the Arbitration and Conciliation Act, 1996; after the 2003 Act, such disputes can be resolved only by the State Commission or an arbitrator appointed by it.	Relied on for the proposition that the special statutory dispute-resolution scheme overrides a contractual arbitration clause. 34-36
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Referred	Interpreted s.86(1)(f)'s 'and' as 'or' regarding SERC's licensee-generator dispute-adjudication and arbitration-referral functions.	Cited in argument on the scope of adjudicatory functions under s.86(1)(f).
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Referred	Flagged that the law on Tribunal composition under the Electricity Act may call for review in light of Madras Bar Association (MJ-II).	Cited in argument supporting a mandatory legal-Member reading.

Gujarat Urja Vikas Nigam Ltd. v. Tarini Infrastructure Ltd.

(2016) 8 SCC 743 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission	Respondent	Distinguished	Tariff incorporated in a power purchase agreement is not a pure act of volition alterable only by mutual consent.	Distinguished — held not applicable to the present (non-contractual, truing-up) facts. 54

Guntaiah & Others v. Hambamma & Others

(2005) 6 SCC 228 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Relied on	Titles/marginal notes have the effect of only marginal notes and are not a legitimate aid to construction of a section or rule.	Relied on to the same effect. para 43

Gunwant Kaur v. Municipal Committee, Bhatinda

(1969) 3 SCC 769 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-040 Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.	Court	Referred	In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law.	Referred (within New Okhla). unnumbered order

Harbanslal Sahnia & Another

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-112 Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others	Court	Followed	A writ petition against the State/instrumentality arising from a contractual obligation is maintainable notwithstanding disputed questions of fact, including for consequential monetary relief, unless action is arbitrary/unreasonable violating Article 14.	Cited for writ maintainability principles despite the presence of disputed facts.
SCJ-112 Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others	Court	Followed	Reiterates the Whirlpool Corporation exceptions to the alternative-remedy bar.	Followed as reinforcing authority.

Himalayan Coop. Group Housing Society v. Balwan Singh

(2015) 7 SCC 373 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-635 Smt. Ranjana Gupta v. Executive Engineer (Distribution), Asst. General Manager & Anr.	Court	Followed	A counsel's admission binds only if unequivocal and authorised; the client is not bound by an unauthorised concession, nor by statements on matters of law or legal conclusions; the court should ascertain authority before accepting a concession that surrenders substantial rights.	Followed. The petitioner relied on para 32; the Court also applied para 21, holding that the Appellate Committee should have been cautious in accepting a concession against the client's interest, recorded only in the operative portion. unnumbered order

Hindustan Zinc Ltd. v. RERC

(2015) 12 SCC 611 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-110 Ramayana Ispat Pvt. Ltd. & Anr. v. State of Rajasthan & Ors. (with connected appeals)	Respondent	Followed	Subordinate legislation, including regulations framed under statutory authority, carries a presumption of constitutionality; the burden lies on the challenger to establish invalidity.	Applied to place the burden on the appellants to demonstrate the Regulations of 2016 were invalid, a burden they failed to discharge.

HMT Ltd. v. Mudappa

JT 2007 (3) SC 112 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Followed	Malice in law doctrine applied to administrative/service action.	Cited in the malice-in-law discussion.

Hoosein Kasam Dada (India) Ltd. v. State of M.P.

AIR 1953 SC 221 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	Unless the new Act expressly or by necessary implication is retrospective, the right of appeal crystallises on institution and a new deposit condition cannot be imposed.	Referred (within Ramesh Singh). 20

In re: Natural Resources Allocation, Special Reference No. 1 of 2012

(2012) 10 SCC 1 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Referred	Clarifies that the binding 'law declared' under Article 141 is the ratio decidendi culled from the judgment as a whole, not every observation.	Cited by counsel on how to read the Tamil Nadu Generation ratio.

Indian Aluminium Co. v. State of Kerala

(1996) 7 SCC 637 : AIR 1996 SC 1431 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-255 M/s. Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	The legislature cannot by mere declaration overrule a judicial decision, but may render it ineffective by validly altering the law fundamentally and retrospectively.	Distinguished: the tests for a validating act do not arise, Clause 4.49 being a protective provision unconnected with overriding any decision. 37

Indira Sohanlal v. Custodian of Evacuee Property, Delhi

AIR 1956 SC 77 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	Observed that the right of appeal in a pending action may be a substantive vesting right, but left the question open.	Referred; the open question was later settled in Garikapati. 17

J.M.D. Alloys Ltd. v. Bihar State Electricity Board

(2003) 5 SCC 226 : AIR 2003 SC 1354 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-211 Ram Bahadur v. State of U.P. & Others	Respondent	Distinguished	Where the period of unauthorised use cannot be established, the maximum (fallback) period may be taken for computing the assessment.	Distinguished: there the period could not be established; here it was ascertainable from the date of connection. 13-14
SCJ-247 M/s. Citi Hotel v. Commissioner, Lucknow Division, Lucknow & Ors.	Respondent	Distinguished	Mere acceptance of a police final report by the Magistrate does not amount to a finding by the criminal court that theft of electricity was not committed, where the accused was not summoned, no charge was framed and no evidence recorded.	Distinguished: here there was a full trial with oral and documentary evidence ending in acquittal, unlike the mere acceptance of a final report in J.M.D. Alloys, so it did not aid the licensee. 13-14
SCJ-2227 Shafi Ahmad v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Petitioner	Distinguished	Cited by the petitioner for restoration of supply following an acquittal on the theft charge.	Distinguished ¶ 7, 9

J.N. Banavalikar v. Municipal Corporation of Delhi

AIR 1996 SC 326 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Relied on	In the absence of impleadment of the person who allegedly passed a mala fide order, a contention of malice in fact should not be countenanced.	Relied on to the same effect. para 26

K.C. Ninan v. Kerala State Electricity Board & Ors.

Civil Appeal No. 2109-2110 of 2004 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-064 M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr.	Court	Referred	Electricity constitutes a 'public good', and the courts' interpretation of the law must foster this position.	Referred to support a purposive interpretation of Clause 5.6 that does not create an artificial independent-testing right in cases of patent, visible meter tampering. para 26

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3326 Munna Lal v. State of U.P. and 5 Others	Court	Relied on	Described as the judgment which followed Rahamatullah Khan on the same continuous-showing aspect of Section 56(2). The High Court relied on it without extracting any holding. Cited only by those civil-appeal numbers.	

K.K. Bhalla v. State of U.P.

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Referred	Cited in the string of malice-in-law authorities at para 42.	Cited in support.

K.S. Rashid & Son v. Income Tax Investigation Commission

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Court	Referred	Where an alternative remedy exists it is ordinarily a sound exercise of discretion to refuse a writ, unless there are good grounds to the contrary.	Noticed within the quoted Whirlpool extract.

Karnal Improvement Trust v. Prakashwanti

(1995) 5 SCC 159 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	Acquiescence does not confer jurisdiction, and an erroneous interpretation should not be perpetuated defeating legislative intent.	Relied on. para 26

Khem Chand v. Union of India

AIR 1958 SC 300 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Petitioner	Referred	A 'reasonable opportunity' of showing cause includes an opportunity of a personal hearing (in the service-inquiry context).	Discussed and distinguished as a service matter, but its principle supported requiring a personal hearing here. 61, 69
SCJ-047 Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.	Court	Relied on	Lays down the content and standard of 'reasonable opportunity' of hearing to be afforded before an adverse order.	Relied on to define the standard of reasonable opportunity applicable before a theft-based Section 126 assessment. unnumbered order
SCJ-1268 Rameshwar v. DVVNL & Another	Petitioner	Referred	A 'reasonable opportunity of hearing' includes the opportunity to defend oneself by cross-examining the witnesses produced against him, to examine himself or other witnesses in support of his defence, and to make representation as to why the proposed action should not be taken.	Cited on the content of 'reasonable opportunity' under Section 126(3); not adjudicated, the writ being decided on the narrower ground that the demand notice rested on the provisional assessment order of 18.5.2011 (quoting paragraph 16 of the writ petition)

Kihoto Hollohan v. Zachillhu

1992 Supp (2) SCC 651 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Followed	A body discharging judicial functions of far-reaching effect must have the essential 'trappings of the Court', including presence of judicial members.	Cited for the 'trappings of a court' principle.

Kiran Singh v. Chaman Paswan

AIR 1954 SC 340 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	A defect of jurisdiction strikes at the very authority of the Court to pass any decree and cannot be cured even by consent of parties.	Relied on to the same effect. para 22

Kunj Behari Lal Butail & Ors. v. State of H.P. & Ors.

(2000) 3 SCC 40 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Where a general rule-making power is conferred, the object of the enactment must be found and the rules tested against whether they fall within its scope; where the delegation is not general, the rules must be protected by the limits prescribed by the parent Act.	Followed.

M. Rathinaswami & Ors. v. State of Tamil Nadu & Ors.

(2009) 5 SCC 625 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-094 Northern Coalfield Ltd. v. Chairman and Managing Director, U.P. Power Corporation Ltd. & Ors.	Petitioner	Distinguished	To save a statutory provision from unconstitutionality, a restricted or extended interpretation may sometimes be required.	Held inapplicable — the non obstante clause in Rule 8(3)-equivalent tariff language here was clear and unambiguous, raising no constitutionality concern requiring a saving interpretation.

M.A.A. Annamalai v. State of Karnataka

(2010) 8 SCC 524 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-665 Ashok Garg v. State of U.P. and Another	Petitioner	Distinguished	A person who had ceased to be a director before the alleged offences, and against whom the FIR contained no allegation, could not be compelled to face trial (para 37 as extracted).	

Madhya Pradesh Electricity Board v. Smt. Basantibai

(1988) 1 SCC 23 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-151 Western Electricity Supply Co. of Orissa Ltd. & Ors. v. M/s Baba Baijanath Roller and Flour Mill Pvt. Ltd.	Court	Followed	A dispute over fraud in tampering with a meter, manipulating the supply line, or breaking the meter's body seal falls outside s.26(6) of the Indian Electricity Act, 1910; an Electrical Inspector has no jurisdiction over such fraud disputes, which are distinct from genuine meter-correctness/defectiveness disputes.	Followed as controlling on the s.26(6)/fraud distinction.
SCJ-167 U.P. Rajya Vidyut Parishad v. Panjab Corbohydrate	Court	Followed	Where there is no allegation of tampering, a dispute whether a meter is correct or faulty falls under s.26(6) of the IEA 1910 and must be decided by the Electrical Inspector, who alone may estimate the energy consumed (not exceeding six months) and fix the amount; the Board cannot itself raise or enforce a supplementary bill pending that determination.	Followed and quoted (para 13) as the governing authority. 7-8
SCJ-262 I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others	Court	Followed	Section 26(6) has no application where the dispute concerns fraud or tampering with the meter / breaking of the body seal.	Followed on the limits of s.26(6). 13

Madhya Pradesh Electricity Board v. Union of India & Ors.

2006 (9) SCALE 194 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-091 Naresh Kumar Madan v. State of Madhya Pradesh	Court	Followed	The Electricity (Supply) Act, 1948 provides for the constitution and composition of State Electricity Boards, each State being enjoined to constitute one.	Cited for the general statutory background on the constitution of Electricity Boards.

Madhya Pradesh State Cooperative Dairy Federation Ltd. v. Rajnesh Kumar Jamindar

(2009) 15 SCC 221 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)	Held not applicable to the facts of the case. para 24

Madras Bar Association v. Union of India & Anr.

(2014) 10 SCC 1 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Followed	Held the National Tax Tribunal Act unconstitutional on grounds including inadequate provision for judicial members; separation of powers/judicial review are part of the basic structure.	Relied upon for the basic-structure/legal-Member reasoning.

Mahanta Moti Das v. S.P. Sahid

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-040 Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.	Court	Referred	Where a question involves investigation of complicated facts and recording of evidence, the High Court may refuse to decide it in a writ proceeding.	Referred (within New Okhla) on declining writ jurisdiction over complex facts. unnumbered order

Maharashtra State Electricity Distribution Co. Ltd. v. Datar Switchgear Ltd.

(2010) 10 SCC 479 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-665 Ashok Garg v. State of U.P. and Another	Petitioner	Distinguished	One cannot presume that a chairman of a company is responsible for all acts committed by or on behalf of the company.	

The Management of Hotel Imperial, New Delhi v. Hotel Workers' Union

AIR 1959 SC 1342 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-116 Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors.	Court	Followed	The power to suspend is a creature of statute or contract, to be exercised keeping in view the letter and spirit of the statute.	Cited (via Dhirendra Kumar Rai) for the statutory basis of suspension power.

Manager, Government Branch Press v. D.B. Belliappa

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Referred	Cited in the string of malice-in-law authorities at para 42.	Cited in support.

Manujendra Dutt v. Purnedu Prosad Roy Chowdhury

AIR 1967 SC 1419 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Relied on	Deletion of a provision (there, s.29 of the Calcutta Thika Tenancy Act) does not divest the forum of jurisdiction over proceedings validly transferred and pending before it, absent a contrary provision.	Relied on. 18

Maria Cristina De Souza Sodder v. Amria Zurana Pereira Pinto

(1979) 1 SCC 92 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Relied on	The right of appeal is a substantive right that vests when the lis commences and is not affected by a repeal unless the repealing enactment expressly or by necessary implication takes it away.	Relied on. 19

Md. Asfak Alam v. State of Jharkhand

Criminal Appeal No. (S) 2207 of 2023, decided 31.07.2023 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-340 Anuradha v. State of U.P. & 4 Others	Court	Followed	Reiterates the Arnesh Kumar guidelines on arrest for offences punishable with seven years or less.	Cited as having reiterated Arnesh Kumar; applied with it to regulate arrest and investigation in this Section 135 case. 5-7

Mool Chand Yadav v. Roza Buland Sugar Mills

1980 (3) SCC 484 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3258 Tarun Kumar Pathak v. State of U.P. And 4 Others	Petitioner	Distinguished	Cited for the proposition that if a statutory appeal is decided in the appellant's favour after the impugned order has been given effect, the appeal becomes infructuous. Distinguished: in that case a stay application in the statutory appeal had been rejected; that was not the case here.	

Mukesh Kumar Agrawal v. State of U.P.

JT 2009 (13) SC 643 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Followed	Elaborates the malice-in-law doctrine as applicable to administrative/statutory action taken without just cause.	Cited alongside S.R. Venkatraman in support of the malice-in-law finding.

Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh

1971 AIR 2399 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-490 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied via the adopted Coordinate Bench holding (para 15 of Writ-C No. 1003603 of 2008).

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-491 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied via the adopted Coordinate Bench holding (para 15 of Writ-C No. 1003603 of 2008).
SCJ-492 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied via the adopted Coordinate Bench holding (para 15 of Writ-C No. 1003603 of 2008).
SCJ-493 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied via the adopted Coordinate Bench holding (para 15 of Writ-C No. 1003603 of 2008).
SCJ-494 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied via the adopted Coordinate Bench holding (para 15 of Writ-C No. 1003603 of 2008).
SCJ-700 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	No direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied to set aside the Ombudsman order of 23.05.2008.
SCJ-701 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	No direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied to set aside the Ombudsman order of 23.05.2008.
SCJ-702 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Applied	No direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied to set aside the Ombudsman order of 23.05.2008.

New Okhla Industrial Development Authority v. Kendriya Karmachari Sahkari Grih Nirman Samiti

2006 (II) RJ 1365 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-040 Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.	Petitioner	Distinguished	The High Court has jurisdiction under Article 226 to try issues of fact and law, but where the petition raises complex questions of fact requiring evidence, it should ordinarily decline and relegate the party to the normal remedy.	Applied against the petitioner: complex factual disputes are better left to the appeal. unnumbered order

Ningamma & Anr. v. United India Insurance Co. Ltd.

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others	Court	Applied	A claimant is entitled to determination of just and reasonable compensation under different heads.	Applied to uphold the heads of compensation awarded. unnumbered order

Nizam's Institute of Medical Sciences v. Prasanth S. Dhananka & Ors.

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others	Court	Referred	In assessing compensation for grievous personal injury, the court strikes a balance and awards just compensation under different heads, taking guidance from Motor Vehicles Act principles.	Referred for the approach to assessing disability compensation. unnumbered order

Oryx Fisheries Private Limited v. Union of India and Others

(2010) 13 SCC 427 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-163 Jai Laxmi Cement Company Ltd. v. State of U.P. & 3 Others	Petitioner	Distinguished	A show-cause notice that pronounces the charge already 'proved beyond doubt' prejudges the issue and is bad; the noticee must not be met with a concluded mind.	Distinguished on facts; the provisional assessment notice here did not express a concluded opinion. (notice discussion)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3209 Gufaran v. Paschimanchal Vidyut Vitran Nigam Limited And 2 Others	Petitioner	Distinguished	A quasi-judicial authority must act with an open mind at the show-cause stage and must not confront the noticee with definite conclusions of guilt (paras 23, 24, 27 and 29 quoted). Distinguished: in that case necessary facts were not specifically recorded in the show-cause notice.	
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner, under the spelling Orxy Fisheries, with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively. It did not extract this decision.	

P. Chitharanja Menon v. A. Balakrishnan

AIR 1977 SC 1720 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3177 Mahendra Pratap Singh v. State of U.P. & 8 Others	Court	Applied	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge. The order spells the name 'P.Chithranja Menon vs. A.Balakrishnan'.	

P. Mohanan Pillai v. State of Kerala

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Referred	Cited in the string of malice-in-law authorities at para 42.	Cited in support.

Padmaraje R. Kadambande v. CIT

1992 (3) SCC 432 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Relied on	A marginal heading (e.g. 'compensation') does not control the operation or interpretation of the section.	Relied on to the same effect. para 42

Pareena Swarup v. Union of India

(2008) 14 SCC 107 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Referred	Discussed in the context of tribunals created to exercise functions earlier performed by regular judicial forums (PMLA Adjudicating Authority).	Distinguished on facts by counsel; addressed by the Court in its broader analysis.

Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd. & Ors.

AIR 2009 SC 647 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2201 M/s Torrent Power Ltd. v. State of U.P. & 3 Others	Petitioner	Distinguished	A transferee/subsequent occupant with no privity of contract cannot be asked to pay a predecessor's electricity dues (which are not a charge on the premises), but a distributor may stipulate clearance of the premises' arrears as a condition of a fresh connection; provisions like Clause 4.3(g)/(h), applying pro-rata on a legally sub-divided (composite) premises, are valid safeguards.	Distinguished on facts - the pro-rata rule applies to a composite sub-divided premises, not to open vacant land that never had a connection ¶ 25-26

Pratap Chandra Mehta v. State Bar Council of Madhya Pradesh & Ors.

(2011) 9 SCC 573 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Courts should give delegated-legislation provisions purposive construction to perpetuate the parent Act's object, while ensuring the rules remain within the field circumscribed by that Act.	Followed.

PTC India Ltd. v. Central Electricity Regulatory Commission

(2010) 4 SCC 603 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission	Court	Relied on	Tariff fixation under Section 62 is quasi-judicial (and appealable under s.111), while Section 61 is the enabling provision for framing generic regulations.	Relied on for the quasi-judicial character of tariff determination. 48
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Referred	The term 'tariff', though undefined in the Electricity Act, 2003, includes not only rate-fixation but also the rules and regulations relating to it.	Cited in support of a broad understanding of 'tariff'.

Punjab Electricity Board v. Zora Singh

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Referred	Cited in the string of malice-in-law authorities at para 42.	Cited in support.

Punjab State Electricity Board v. Vishwa Caliber Builders Private Limited

(2010) 4 SCC 539 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)	Respondent (PVVNL)	Followed	In the absence of a provision in the Act or Regulations, an Electricity Ombudsman commits jurisdictional error by directing regularisation of unauthorised use of electricity or refund of alleged excess charges.	Applied as the controlling authority on the limits of Ombudsman jurisdiction.
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	An Ombudsman commits jurisdictional error, absent statutory authorisation, by directing regularisation of unauthorised electricity use and refund of amounts properly charged for consumption in excess of sanctioned load, even where the licensee's own infrastructural delay contributed to the situation.	Followed as illustrating that excess-load consumption is validly assessable as unauthorised use.

R.C. Cooper v. Union of India

(1970) 1 SCC 248 : AIR 1970 SC 564 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-158 Ashok Kumar & Ors. v. State of U.P. & Ors.	Court	Referred	A company registered under the Companies Act has a separate legal personality distinct from its shareholders.	Referred on the separate legal personality of a company in analysing DVVNL's status.

R.P. Kapur v. State of Punjab

AIR 1960 SC 866 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-539 Syed Avesh Ahmad v. State of U.P. and Another	Court	Followed	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	

Raghunath Rai Bareja & Anr. v. Punjab National Bank & Ors.

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others	Court	Relied on	The first and foremost rule of construction is the literal rule; where the provision is unambiguous, the court reads the statute as it is without adding words (approving Hiralal Ratanlal, Harshad S. Mehta and Patangrao Kadam).	Relied on to construe 'public utility service' literally — supply of power to the public, without importing a consumer requirement. unnumbered order

Rajeev Hitendra Pathak & others v. Achyut Kashinath Karekar & another

2011 Law Suit (SC) 871 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3154 Executive Engineer, EUDD-VI And Another v. Girdhari Lal And Another	Petitioner	Distinguished	Relied on by the licensee for the proposition that there is no power of review or recall under the Electricity Act, 2003 and that the Civil Procedure Code applies to a tribunal only to a limited extent, so the appellate authority could not have recalled or reviewed its order.	
SCJ-3155 Executive Engineer, EUDD-VI And Another v. Anand Agrawal And Another	Petitioner	Distinguished	Relied on by the licensee for the proposition that there is no power of review or recall under the Electricity Act, 2003 and that the Civil Procedure Code applies to a tribunal only to a limited extent, so the appellate authority could not have recalled or reviewed its order.	

Ram Chandra Prasad Sharma and others v. State of Bihar and another

AIR 1967 SC 349 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	In a criminal trial for theft of electrical energy under Section 39 of the Indian Electricity Act, 1910, mens rea is a relevant consideration.	Distinguished — that case concerned criminal prosecution (mens rea relevant), unlike a Section 126 civil assessment where mens rea is irrelevant. para 23

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-637 Joginder Singh v. State of U.P. and Others	Petitioner	Distinguished	Invoked by the revisionist for the proposition that the summoning court had to examine whether the accused's act was dishonest under Section 39 of the Indian Electricity Act, 1910.	Distinguished as totally inapplicable. The 1910 Act stands repealed by Section 185 of the 2003 Act; even if it were in force, intention is not examined at the Section 204 CrPC summoning stage. unnumbered

Ramakrishna Poultry (P) Ltd. v. R. Chellappan

(2009) 16 SCC 743 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-097 Orissa Power Transmission Corporation Ltd. & Ors. v. Asian School of Business Management Trust & Ors.	Court	Followed	Where a landowner purchased land after a transmission-line survey/routing process was already underway, the appropriate remedy is a practical accommodation (e.g. raising line height/clearance) rather than re-routing an established transmission line, especially given the larger public interest.	Applied by analogy to hold that a purchaser with knowledge of an ongoing/prior transmission project cannot obtain re-routing to serve individual convenience over public interest.

Ramchandra Dagdu Sonavane v. Vithu Hira Mahar

(2009) 10 SCC 273 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-097 Orissa Power Transmission Corporation Ltd. & Ors. v. Asian School of Business Management Trust & Ors.	Court	Followed	The doctrine of res judicata (including constructive res judicata under Explanation IV, s.11 CPC) applies broadly, barring re-litigation of matters that were or ought to have been raised in an earlier proceeding.	Applied to hold that the second writ petition, seeking substantially the same relief as the first (dismissed) petition, was barred.

Ramesh Singh v. Cinta Devi

(1996) 3 SCC 142 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Followed	A vested right of appeal under the old Motor Vehicles Act is not dislodged by the new Act; the appellant may appeal without the pre-deposit required by the proviso to s.173 of the new Act.	Followed as the most apt authority. 20

Rashid Ahmed v. Municipal Board, Kairana

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Court	Referred	Existence of an adequate legal remedy is a factor in the grant of writs, not an absolute bar.	Noticed within the quoted Whirlpool extract.

Raymond Ltd. & Anr. v. M.P. Electricity Board & Ors.

(2001) 1 SCC 534 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-030 Harihar Cold Storage v. P.V.V.N.L. & Another	Court	Followed	Where the consumer has not committed to a fixed minimum-guarantee sum, the licensee can enforce minimum-guarantee charges only by ensuring the minimum guaranteed supply; if the licensee fails to supply, the consumer is exonerated from paying minimum-guarantee charges.	Applied to hold minimum-guarantee charges not recoverable where supply failed by the licensee's fault. unnumbered order

Raymond Ltd. v. State of Chhattisgarh & Ors.

(2007) 3 SCALE 341 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-091 Naresh Kumar Madan v. State of Madhya Pradesh	Court	Followed	Interpretation of a term in one statute cannot be done with reference to its definition contained in another statute.	Applied as the governing interpretive principle to reject reliance on s.81 of the 1948 Act to limit the 1988 Act's own 'public servant' definition.

Reliance Infrastructure v. State of Maharashtra

(2019) 3 SCC 352 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-110 Ramayana Ispat Pvt. Ltd. & Anr. v. State of Rajasthan & Ors. (with connected appeals)	Respondent	Followed	Regulatory decisions of expert bodies should be accorded deference unless shown to be wholly irrational, ultra vires the parent statute, or violative of fundamental rights.	Applied as the governing standard of judicial restraint in reviewing RERC's Regulations of 2016.

Roop Singh Negi v. Punjab National Bank

(2009) 2 SCC 570 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Court	Relied on	Cited with Saroj Kumar Sinha and Kharak Singh for the establishment's obligation to prove charges by legal evidence in a departmental inquiry.	

S. Sethuraman v. R. Venkataraman & Ors.

AIR 2007 SC 2499 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	If jurisdiction cannot be conferred by consent, consent equally cannot clothe an authority to exercise jurisdiction in an illegal manner.	Relied on. para 27

S.J.S. Business Enterprises (P) Ltd. v. State of Bihar

(2004) 7 SCC 166 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-097 Orissa Power Transmission Corporation Ltd. & Ors. v. Asian School of Business Management Trust & Ors.	Respondent	Distinguished	A writ petition is not automatically barred merely because a parallel civil suit was filed and later withdrawn; the court may call upon the party to elect between remedies rather than dismissing outright.	Distinguished — there the suit was withdrawn within two weeks of filing (an early election), whereas here the suit was kept pending through two rounds of writ litigation and withdrawn only once the writ appeal was entertained, amounting to abuse of process.

S.M.S. Pharmaceuticals Ltd. v. Neeta Bhalla

(2005) 8 SCC 89 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-665 Ashok Garg v. State of U.P. and Another	Petitioner	Distinguished	A complaint under section 141 of the Negotiable Instruments Act must specifically aver that the accused was in charge of and responsible for the conduct of the company's business.	

S.R. Venkatraman v. Union of India

AIR 1979 SC 49 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Followed	Malice in law means an act done wrongfully and without reasonable/probable cause, though not necessarily with ill-will; an order founded on non-existent or misrepresented facts is vitiated by malice in law.	Applied as the foundational authority on malice in law to vitiate the assessment.

S.S. Bola v. B.D. Sardana

(1997) 8 SCC 522 : AIR 1997 SC 3127 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-255 M/s. Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	A legislature cannot directly override a judicial decision but, under its plenary powers, may enact a law fundamentally altering the provisions that were the basis of the decision; judicial review is a basic feature.	Distinguished: no provision here affects the interim order or abridges judicial review. 35-36

Satender Kumar Antil v. Central Bureau of Investigation & Another

(2022) 10 SCC 51 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-279 Shah Faisal v. State of Uttar Pradesh & 4 Others	Petitioner	Followed	Bail applications are to be considered in accordance with the principles laid down in this decision (guidelines on arrest, appearance, and expedition of bail).	Applied only to the direction that, if the applicant appears within two weeks and files bail, the trial court shall decide it expeditiously in light of this case. Not applied to the s.135/Code merits, which were not pressed. (unnumbered order)

Seth Banarsi Dass (dead) by LRs v. District Magistrate and Collector, Meerut

(1996) 2 SCC 689 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-170 Heera Lal v. State of U.P. & Others	Petitioner	Referred	Recovery proceedings are equivalent to execution proceedings under the CPC; an auction sale without deciding objections is a material irregularity vitiating the sale.	Cited by the petitioner; the Court held the executing authority is confined to the decree and cannot decide objections that vary it. (order)

Sharad Kumar Sanghi v. Sangita Rane

(2015) 12 SCC 781 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-665 Ashok Garg v. State of U.P. and Another	Petitioner	Relied on	Cited by the petitioner with the other director-liability authorities; the Court did not extract or discuss it.	

Shiba Shankar Mohapatra v. State of Orissa

(2010) 12 SCC 471 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Cited by the petitioner; no ratio extracted.	

Shiv Shakti Coop. Housing Society, Nagpur v. Swaraj Developers

(2003) 6 SCC 659 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Relied on	An appeal is a continuation of the original proceedings; the right of appeal is statutory and, once conferred, a vested substantive right, distinct from the inherent right to sue.	Relied on. 22

Sir Chunilal V. Mehta & Sons Ltd. v. Century Spg. & Mfg. Co. Ltd.

AIR 1962 SC 1314 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission	Court	Relied on	Test for a 'substantial question of law': one of general public importance or directly and substantially affecting the parties' rights, not finally settled or free from difficulty.	Relied on to frame the s.125 substantial-question-of-law threshold. 29-30

Somesh Tiwari v. Union of India

(2009) 2 SCC 592 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Followed	Malice in law/fact distinction and its application to vitiate administrative action taken on an improper or misrepresented basis.	Cited in the malice-in-law discussion.

St. John's Teachers Training Institute v. Regional Director, National Council for Teacher Education & Anr.

(2003) 3 SCC 321 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Delegated legislation may supplement, but not supplant, the parent enabling Act; what is permitted is delegation of ancillary/subordinate legislative functions or filling up of details.	Followed.

State of A.P. & others v. Pioneer Builders, A.P.

(2006) 12 SCC 119 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3170 M/S Sahara India Commercial Corporation Ltd. v. Executive Engineer Electricity Urban Distribution & 4 Others	Respondent	Referred	Cited for the contention that a section 80 CPC notice is a condition precedent to a suit against the Government or its public officer and cannot be dispensed with unless urgency is shown.	

State of Bihar & Others v. Subhash Singh

1997 (4) SCC 430 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	State action must be carried out in accordance with the Constitution and within legal limits; judicial review can examine constitutionality and procedural legality of administrative action.	Held inapplicable — the assessing authority's decision was not shown to be dehors the law or established procedure. unnumbered order

State of Bihar v. P.P. Sharma

1992 Supp (1) SCC 222 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Relied on	A person against whom mala fides or bias is imputed must be impleaded eo nomine and given an opportunity to meet the allegation; absent this, no enquiry into mala fides can be made.	Relied on for dismissing the petitioner's unimpleaded mala fide plea. para 25
SCJ-539 Syed Avesh Ahmad v. State of U.P. and Another	Court	Followed	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	

State of Bombay v. Supreme General Films Exchange Ltd.

AIR 1960 SC 980 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	To the same effect on the vested right of appeal.	Referred (within Ramesh Singh). 20

State of Haryana v. Bhajan Lal

AIR 1992 SC 604 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-102 Pawan Kumar Laur v. State of U.P. & Others	Court	Followed	Courts should not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars the police from investigating.	Applied (via Ajit Singh @ Muraha and Satya Pal) as the governing standard to decline quashing the FIR.
SCJ-539 Syed Avesh Ahmad v. State of U.P. and Another	Court	Followed	Illustrative categories in which inherent power under s.482 Cr.P.C. may be exercised to quash (quoted in full).	
SCJ-3081 Pawan Kumar Laur v. State of U.P. and others	Court	Followed	Courts will not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars investigation.	Followed via the two Allahabad Full Benches as the governing Apex Court standard.

State of Karnataka & Anr. v. H. Ganesh Kamath & Ors.

(1983) 2 SCC 402 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	It is a well-settled principle that conferment of rule-making power does not enable the rule-making authority to make a rule travelling beyond, or inconsistent with, the enabling Act.	Followed.

State of Maharashtra v. Laljit Rajashi Shah & Ors.

AIR 2000 SC 937 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-091 Naresh Kumar Madan v. State of Madhya Pradesh	Petitioner (via Bimal Kumar Gupta)	Distinguished	A person deemed a public servant under an analogous 'deemed to be public servant' provision for Maharashtra Cooperative Societies employees was not a public servant for purposes of the (former) Prevention of Corruption Act, 1947.	Distinguished — that case concerned a cooperative-society member, not an employee of a statutory corporation, and did not address the 1988 Act's broader definition.

State of Orissa v. Bimal Kumar Mohanty

AIR 1994 SC 2296 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-116 Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors.	Court	Followed	Suspension should not be passed as an administrative routine or mechanically; it requires consideration of the gravity of alleged misconduct and the evidence, applying the disciplinary authority's mind.	Applied as the governing standard to quash the suspension order.

The State of Orissa v. Madan Gopal Rungta

1952 SCR 28 · Supreme Court of India (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-095 Om Prakash s/o Gauri Shankar v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Followed	Article 226 cannot be used to grant interim relief as the only and final relief; interim relief is available only as ancillary to a final relief obtainable in a proceeding actually pending and to be decided on merits before that court.	Applied as the controlling authority to reject the petitioner's request for interim protection after withdrawing the writ petition.
SCJ-3258 Tarun Kumar Pathak v. State of U.P. And 4 Others	Court	Followed	Cited for the proposition that when the writ petition is not maintainable, no interim relief can be granted while dismissing it.	

State of Orissa v. Mamata Mohanty

(2011) 3 SCC 436 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)	Court	Followed	Article 14 is not meant to perpetuate illegality and does not envisage negative equality; an inadvertent benefit granted to others does not confer a right to the same relief.	Applied alongside Chandigarh Administration and Dabasish Mukherjee for the negative-equality principle.

State of T.N. & Anr. v. P. Krishnamurthy & Ors.

(2006) 4 SCC 517 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Courts must consider the nature, object and scheme of the enabling Act when assessing subordinate legislation's validity; where inconsistency is not with a specific provision but with the object/scheme of the parent Act, the court should proceed with caution before declaring invalidity.	Followed, though the Court ultimately found the inconsistency here direct and clear.

State of U.P. v. Mohd. Nooh

AIR 1958 SC 86 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Referred	The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite the availability of other adequate legal remedies.	Noticed within the quoted Whirlpool extract as part of the catena on the alternative-remedy rule. 17
SCJ-165 Kamil v. State of U.P. & Others	Court	Referred	The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite adequate alternative remedies.	Noticed within the quoted Whirlpool extract. 20

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Court	Referred	The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite other adequate legal remedies.	Noticed within the quoted Whirlpool extract.

State of Uttar Pradesh v. Saroj Kumar Sinha

(2010) 2 SCC 772 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Court	Relied on	Cited for the settled principle that in a departmental inquiry the establishment must prove the charges by leading evidence; the inquiry officer is not to treat the charge-sheet as self-proving.	

State of Uttaranchal v. Kharak Singh

(2008) 8 SCC 236 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Court	Relied on	Cited for natural justice in disciplinary inquiries: evidence must be led and the delinquent given opportunity to meet it.	

State of W.B. v. Rupa Ice Factory (P) Ltd.

(2004) 10 SCC 635 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-151 Western Electricity Supply Co. of Orissa Ltd. & Ors. v. M/s Baba Baijanath Roller and Flour Mill Pvt. Ltd.	Court	Followed	Where the finding is that a consumer tapped electric energy directly bypassing the meter circuit, s.26(6)'s reference-to-Electrical-Inspector procedure has no application; following M.P. Electricity Board v. Basantibai and JMD Alloys v. Bihar SEB, tampering/theft/pilferage cases fall outside s.26's scope entirely.	Followed.

State of West Bengal v. Dabasish Mukherjee

(2011) 14 SCC 187 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)	Court	Followed	Equality before law is a positive concept, not enforceable negatively; an inadvertent illegal benefit to one person does not confer a legal right on others to the same benefit.	Applied for the negative-equality principle.

Sub-Divisional Officer (P), UHBVNL v. Dharam Pal

(2006) 12 SCC 222 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-151 Western Electricity Supply Co. of Orissa Ltd. & Ors. v. M/s Baba Baijanath Roller and Flour Mill Pvt. Ltd.	Court	Followed	In cases of meter tampering, there is no scope for reference to an Electrical Inspector under s.26(6).	Followed.

Sukhdev Singh & Ors. v. Bhagatram Sardar Singh Raghuvanshi & Anr.

(1975) 1 SCC 421 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Statutory bodies cannot use rule/regulation-making power to enlarge their powers beyond the scope intended by the legislature; delegated rules/regulations establish patterns of conduct subordinate to the statute.	Followed as foundational authority on the limits of delegated legislation.

Sunil Bharti Mittal v. Central Bureau of Investigation

(2015) 4 SCC 609 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-665 Ashok Garg v. State of U.P. and Another	Petitioner	Distinguished	There is no vicarious criminal liability unless the statute specifically provides so (para 42 as extracted).	

Surya Dev Rai v. Ram Chander Rai and Others

2003 (6) SCC 675 · Supreme Court of India

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3170 M/S Sahara India Commercial Corporation Ltd. v. Executive Engineer Electricity Urban Distribution & 4 Others	Court	Applied	Supervisory jurisdiction under Article 227 is not to be used ordinarily for every wrong order or error of law unless manifest injustice is shown; it is to be used sparingly.	

Swarn Singh Chand v. Punjab State Electricity Board

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Referred	Cited in the string of malice-in-law authorities at para 42, in an electricity-board context.	Cited in support.

Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power Generating Company Pvt. Ltd.

(2014) 11 SCC 53 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Followed	Adjudicatory functions ought not to be conducted by a State Commission in the absence of a judicial Member, at least for disputes not fairly relative to tariff fixation or advisory functions.	Followed and extended into the present holding.

Tata Hydro Electric Power Supply Co. Ltd. v. Union of India

(2003) 4 SCC 172 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Referred	Named only as a case relied on in Gautam Motors; no ratio extracted.	

Tinsukhia Electricity Supply Co. Ltd. v. State of Assam & Ors.

(1989) 3 SCC 709 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Court	Followed	A statute must be construed so as to make it effective and operative ('ut res magis valeat quam pereat'); courts should avoid interpretations reducing a provision to futility.	Applied to support a harmonious, purposive reading of ss.126 and 135 that gives effect to both provisions rather than rendering s.126 inoperative in theft cases.

Transmission Corporation of A.P. Ltd. & Ors. v. Sri Rama Krishna Rice Mill

(2006) 3 SCC 74 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Petitioner	Relied on	In an electricity assessment dispute, merely taking note of the objections filed is not compliance with the relevant rules; natural justice is not a straitjacket formula and varies with the circumstances.	Relied on / discussed for the content of the opportunity of hearing in the consumer-electricity context. 61, 69
SCJ-047 Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.	Court	Relied on	Explains the standard of reasonable opportunity of hearing in the context of an electricity assessment.	Relied on to the same effect as Khem Chand. unnumbered order
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	Material relied upon against a consumer must be disclosed to him; mere noting of his objections is not sufficient compliance with natural justice, though no strait-jacket procedure applies.	Held inapplicable — the petitioner failed to show inadequate opportunity, and his objections were in fact considered and discussed in the assessment order. para 21

U.P. Power Corporation Ltd. & Ors. v. Anis Ahmad

(2013) 8 SCC 491 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	The Electricity Supply Code under s.50 need not provide, and does not relate to, assessment of charges for 'unauthorised use of electricity' under Section 126 or offences under Sections 135-140; these fall within Section 126/127's own separate statutory scheme.	Followed and applied to hold that a Supply Code Regulation purporting to create an exemption from s.126 liability is ultra vires.
SCJ-406 Managing Director, D.V.V. Nigam Ltd. & 2 Others v. Sri Kartar Singh & Another	Petitioner	Distinguished	Proceedings before a District Consumer Forum are not maintainable in view of this decision (as invoked by the petitioners).	Cited by the petitioners in the 10.10.2014 admission order against a District Consumer Forum proceeding. The 04.11.2025 Court did not name the case; it held that this writ does not arise from a s.126 assessment or a s.135–140/150 complaint, such complaints not being maintainable before Consumer Forums. 10
SCJ-877 Consumer forum has no jurisdiction over EA assessment	1	Referred		
SCJ-1565 Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. v. The Electricity Ombudsman & Another	Petitioner	Relied on	The Consumer Grievance Redressal Forum and the Electricity Ombudsman are not fora competent to decide the correctness of bills / questions of assessment; a consumer's challenge to the correctness of a bill lies under the mechanism of the Electricity Supply Code (clause 6.5), not before the CGRF or the Ombudsman.	Relied on (prima facie) to hold the CGRF proceedings not maintainable and the Electricity Lokpal without competence, and to stay the Lokpal's order pending enquiry. order of 17.2.2016

U.P. Rajkiya Nirman Nigam Ltd. v. Indure Pvt. Ltd.

AIR 1996 SC 1373 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	(Same principle as Karnal Improvement Trust — acquiescence does not confer jurisdiction.)	Relied on to the same effect. para 26

Uma Nath Pandey & Ors. v. State of U.P. & Anr.

(2009) 12 SCC 40 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-092 Navi Hasan v. U.P. Power Corporation & Another	Court	Followed	Natural justice is another name for common-sense justice; adherence to its principles is of supreme importance whenever a quasi-judicial body or an administrative action involving civil consequences is in issue.	Applied as the governing authority on the audi alteram partem principle to quash the impugned demand order.

Union of India v. Jai Prakash Singh

(2007) 10 SCC 712 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Cited by the petitioner; no ratio extracted.	

Union of India v. Jyoti Prakash Mitter

AIR 1971 SC 1093 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Respondent	Referred	Article 217(3) does not guarantee a right of personal hearing; a mere denial of an oral representation does not, without more, vitiate proceedings.	Referred (respondent's line); distinguished as not a consumer-electricity context. 63

Union of India v. Madras Bar Association

(2010) 11 SCC 1 · Supreme Court (Constitution Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Followed	Tribunals substituting for court jurisdiction should possess the same independence/security/capacity as the courts they replace; members discharging judicial functions must be drawn from sources possessing legal expertise.	Applied (with qualification, since no jurisdiction transfer from courts was involved here) to require a legally-qualified Member.

Union of India v. Prakash P. Hinduja & Another

AIR 2003 SC 2612 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-114 Saurabh Agrawal & Another v. State of U.P. & Others	Court	Followed	Section 482 Cr.P.C. power to quash criminal proceedings may be exercised (sparingly, with circumspection) where the FIR/complaint even taken at face value discloses no offence, or the uncontroverted allegations/evidence do not disclose commission of any offence, or there is an express legal bar to continuance of proceedings.	Applied as the governing standard for quashing the s.135 prosecution.

Union of India v. S.C. Parashar

(2006) 3 SCC 167 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Petitioner	Referred	Cited by the petitioner on 01.11.2023: an amalgam of minor and major penalties is contrary to the principle in Parashar. The reserved judgment did not apply or decide that point.	

United Commercial Bank Ltd. v. Their Workmen

AIR 1951 SC 230 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	No acquiescence or consent can give a jurisdiction to a court of limited jurisdiction which it does not possess.	Relied on for the no-jurisdiction-by-consent principle. para 21

United India Insurance Co. Ltd. v. Ajay Sinha

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others	Court	Relied on	A Permanent Lok Adalat does not act merely as an arbitrator whose award may be challenged; Parliament has given it an adjudicatory role to decide the matter.	Relied on for the adjudicatory character of the Permanent Lok Adalat. unnumbered order

Uttar Pradesh Power Corporation Ltd. v. National Thermal Power Corporation Ltd. & Ors.

(2011) 12 SCC 400 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.	Court	Referred	The Central Electricity Regulatory Commission is an expert body for tariff determination; courts should ordinarily not interfere with tariff determinations.	Cited by counsel to emphasise the primarily technical/expert (non-adjudicatory) character of Commission functions.

V.K. Majotra v. Union of India

(2003) 8 SCC 40 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Cited by the petitioner; no ratio extracted.	

Vice-Chancellor, Banaras Hindu University v. Shrikant

(2006) 11 SCC 42 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)	Held not applicable to the facts of the case. para 24
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	A statutory authority's action, though otherwise bona fide, must be fair and reasonable; an order made in ignorance of the prescribed procedure or on extraneous considerations is vitiated in law and subject to judicial review.	Held inapplicable — no violation or unfairness in procedure was alleged. unnumbered order

Vishal Agrawal v. Chhattisgarh State Electricity Board

(2014) 3 SCC 696 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-665 Ashok Garg v. State of U.P. and Another	Court	Followed	Section 151's complaint route does not exclude FIR and police investigation; offences under the Electricity Act are tried by the Cr.P.C., so a charge-sheet for section 135 is competent (paras 20, 21 and 23 as extracted).	

Vitthalbhai Narangbhai Patel v. CST

AIR 1967 SC 344 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	To the same effect on the vested right of appeal.	Referred (within Ramesh Singh). 20

Western Electricity Supply Co. of Orissa Ltd. v. Baba Baijanath Roller and Flour Mill (P) Ltd.

(2014) 105 ALR 762 (SC) · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-262 I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others	Court	Followed	Section 26 is relevant only to a dispute about the correctness of a meter; a question of fraud/tampering falls outside it.	Followed as the recent authority applying the s.26(6) line of cases. 19

Whirlpool Corporation (established exceptions to alternative remedy)

Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-112 Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others	Court	Followed	The alternative-remedy rule does not operate as an absolute bar where the writ petition seeks enforcement of a fundamental right, alleges violation of natural justice, or challenges an order/proceeding as wholly without jurisdiction or the vires of an Act.	Applied as the governing exceptions framework, though the Court ultimately relegated the petitioner to the departmental process for the factual/technical determination.

Whirlpool Corporation v. Registrar of Trade Marks, Mumbai

(1998) 8 SCC 1 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Petitioner	Referred	The availability of an alternative remedy is no bar to a writ petition where there is a breach of natural justice or an excess of jurisdiction.	Referred (petitioner's line on maintainability despite the s.127 appeal). 45
SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Relied on	Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.	Relied on and quoted (paras 15-21) to entertain the writ despite the s.127 appeal, the order being challenged for breach of natural justice. 15-21

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-163 Jai Laxmi Cement Company Ltd. v. State of U.P. & 3 Others	Court	Relied on	Alternative statutory remedy does not bar a writ where there is a jurisdictional defect, a challenge to vires, or a breach of natural justice; otherwise the High Court should decline to interfere.	Applied: the case did not fall within any of the Whirlpool exceptions, so the writ was not entertained at the provisional stage. quoted within SOUTHCO 82
SCJ-165 Kamil v. State of U.P. & Others	Court	Relied on	Alternative statutory remedy does not bar a writ where there is a breach of natural justice, enforcement of fundamental rights, want of jurisdiction, or a challenge to vires; exhaustion is a rule of discretion, not law.	Relied on and quoted (paras 15-21) to entertain the writ despite the s.127 appeal. 20
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Court	Applied	Alternative statutory remedy does not bar a writ under Article 226 where there has been a violation of natural justice (or enforcement of fundamental rights, or want of jurisdiction / vires). Exhaustion is a rule of policy, convenience and discretion, not of law.	Quoted (paras 14–20 of the report) and applied to entertain the writ despite the statutory appeal, the 24.02.2009 assessment having been passed in breach of natural justice.

Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq

2005 SCC (Cr.) 283 · Supreme Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-539 Syed Avesh Ahmad v. State of U.P. and Another	Court	Followed	At the quashing stage only a prima facie case is examined (para 10 as cited).	
SCJ-2555 Janardan Singh v. State of U.P.	7	Referred		
SCJ-2747 Satish Chandra v. State of U.P. — photography not mandatory under Supply Code; s.482 challenge to s.138(1)(b) charge-sheet dismissed	5	Referred		

Allahabad High Court 88 authorities · 301 citations

Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Limited and another

Civil Misc. Writ Petition No.1545 of 2009, decided 15.1.2009 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2213 M/S Malhotra Ice Factory v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Another	Court	Relied on	On meter testing: after sealing the meter the Nigam must serve a notice intimating the consumer to exercise his option to get the meter tested by the Electrical Inspector or by an approved outside agency, and once the option is exercised a date must be fixed for testing in the consumer's presence.	Relied on order of 9.11.2009 (WP 8029/2007, extracted in the judgment)

Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.

2009 (1) ADJ 430 (DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-064 M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	Clause 5.6(c) requires the consumer's agreement for testing at the licensee's lab or an independent lab; failure to apprise the consumer of the right to independent testing (where tampering was found only via a subsequent lab test) renders the sealing/assessment proceedings irregular and illegal.	Distinguished on the same ground as Mohd. Sagir. paras 20, 27
SCJ-071 M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.	Court	Followed	The procedure prescribed for meter testing (enabling the consumer to remain present) is mandatory; a test report obtained without following it cannot be relied on to take action against the consumer.	Followed as now-final law (SLP dismissed), applied to invalidate the manufacturer's ex parte test report. para 27

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-114 Saurabh Agrawal & Another v. State of U.P. & Others	Court	Followed	Clause 5.6(c)(iii) requires the consumer's agreement for the choice of testing laboratory (licensee's/independent/Electrical Inspector); this being a harsh provision against the consumer must be construed strictly, and failure to apprise the consumer of this right renders the meter-sealing/testing proceedings irregular and illegal.	Applied (quoting para 6) to reinforce that non-compliance with the meter-testing consumer-rights procedure vitiates the proceedings.
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Followed	A meter alleged to be missing, defective, or tampered must be tested/verified per Clause 5.6 before an assessment premised on that allegation is finalised.	Followed as part of this corpus's Clause 5.6 meter-testing line.
SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Followed	Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the option renders the proceedings illegal.	Followed and applied; the Court held the law it lays down fully supports the petitioner. Noted that the licensee's SLP against Amrawati Devi was dismissed by the Supreme Court on 3/8/2009. (Amrawati Devi is digested in the corpus as SCJ-162.) 6-11
SCJ-161 Rituraj v. State of U.P. & Others	Petitioner	Followed	The licensee must apprise the consumer of the Clause 5.6(c)(iii) right to have a sealed meter tested at an independent agency; failure renders the sealing and testing illegal, and no waiver runs without knowledge of the right.	Followed and quoted at length. (Digested in the corpus as SCJ-162.) 4

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Recited in the 11.5.2023 listing order: provisional assessment notice dated 31.12.2008 quashed; meter to be tested by an independent agency under Clause 5.6(c)(iii); restoration on deposit. Not applied in the reserved reasons.	
SCJ-805 Gaurav Gupta v. UPERC	1	Referred		
SCJ-825 Rajendra Kumar Gupta v. DVVNL	2	Referred		
SCJ-1060 M/s Rukmani Ferro Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Referred	Basis of the interim order dated 28 October 2009 staying the assessment proceedings; also relied on by the petitioner for the consumer's right, under Paragraph 5.6 of the Supply Code, to have the meter tested by an independent agency. Said to have been affirmed by the Apex Court.	Referred as the basis of the earlier interim order and as cited by the petitioner; not applied in the final disposition, which relegated the parties to the objection process. pp. 2-3
SCJ-2727 M/s Bismillah Rice Mills v. Madhyanchal Vidyut Vitran Nigam Ltd.	Court	petitioner's reliance held misconceived on these facts		
SCJ-2858 Malhotra Ice Factory v. State of U.P. and 3 Others	Court	Referred	Laid down the procedure for getting the meter tested in connection with a Section 126 assessment.	Referred to in the recital of the order dated 09.11.2009 as the procedure the department was at liberty to follow to get the meter tested; the department did not do so. order of 15.5.2023 para 3

Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.

2009 (74) ALR 701 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-167 U.P. Rajya Vidyut Parishad v. Panjab Corbohydrate	Court	Referred	Under the 2003 regime (Clauses 5-6 of the Code 2005) the consumer likewise has a right to have a disputed meter tested by the Electrical Inspector, the Nigam's lab or an independent agency, and must be given notice of that option.	Referred as the analogous position under the Code 2005. (Digested in the corpus as SCJ-162.) 9

Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. and another

2009 (2) AWC 1189 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-637 Joginder Singh v. State of U.P. and Others	Petitioner	Distinguished	Not stated in this judgment; cited with the 2002 Code theft definition.	Held to have no relevance once the Supply Code itself was held irrelevant to the criminal revision. unnumbered
SCJ-2853 M/S Nageshwar Papers Limited v. Dakshinanchal Vidyut Vitran Nigam Limited and Another	Court	Followed	Under Clause 5.6(c)(iii) a sealed defective meter is tested as agreed by the consumer; the consumer has a right to independent testing and the licensee a corresponding duty to apprise him, failing which the sealing proceedings are irregular and illegal; after sealing, a notice (in bold capitals) must be served for the consumer to exercise the testing option, and the resulting test report is final and binding.	Extensively reproduced (paragraphs 6-11) and followed as the settled law governing the relief granted. p. 1-3

Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd. & others

2005 (2) AWC 1269 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-047 Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.	Petitioner	Distinguished	Held (in the petitioner's submission) that the pre-2007 rate of one-and-half times the tariff under Section 126(5)/(6) applies where the cause of action (theft) arose before the amendment.	Given only persuasive value; not followed — the Court held that the law as of the date of the FINAL assessment (not the date the cause of action arose) governs the applicable rate. unnumbered order

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-211 Ram Bahadur v. State of U.P. & Others	Respondent	Distinguished	On use of the maximum period where the actual period of unauthorised use cannot be established.	Distinguished on the same basis. 13-14
SCJ-640 M/S Venus Stone Crushing Co. Thru' Partner & Another v. The U.P. Power Corpn. Ltd. Thru' Chairman & Others	Court	Followed	In a theft billing, assessment is at one-and-a-half times the tariff under Section 126(6), not under paragraph 6.16.2 of the 2002 Code; Section 126(6) prevails over paragraph 6.17.2.	Followed. Assessment under paras 6.17.1 and 6.17.2 was held absolutely illegal in view of this decision. unnumbered order

Smt. Chandrawati v. U.P. State Electricity Board

1986 All LJ 1451 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-170 Heera Lal v. State of U.P. & Others	Petitioner	Distinguished	Where no notice of demand was admittedly served, the consumer is entitled to a mandamus restraining recovery under the demand and recovery certificates.	Distinguished as factually different — there the non-service was admitted, whereas here there was no such admission. (order)

M/s Citi Hotel v. Commissioner, Lucknow Division and Others

AIR 2009 (All.) 137 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2227 Shafi Ahmad v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Petitioner	Distinguished	Cited by the petitioner for the proposition that an acquittal ends the licensee's demand and requires restoration.	Distinguished ¶ 7, 9

M/s Hasan Steel Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

2008 (7) ADJ 104 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3201 M/S Hind Industries Ltd And Another v. The Commissioner Meerut And 4 Others	Petitioner	Relied on	Relied on by the petitioner with Clause 8.2(x)(g) and (h); the Court did not discuss the decision.	

Smt. Karuna Jaiswal v. State of U.P.

2018 (9) ADJ 107 (DB) (LB) · Allahabad High Court (DB) (Lucknow Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Court	Referred	Bench decision cited in the same catena on natural justice in disciplinary inquiries; no separate holding extracted.	

M/s KSS Electrodes Private Limited v. State of U.P. and 2 others

Writ - C No. 13786 of 2023, order dated 9.5.2023 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3251 Lallan Pandey v. State of U.P. & 2 Others	Court	Followed	Where an efficacious alternative remedy lies to the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, the writ petition is disposed of with a direction that an application under the Code filed within a short window be decided in accordance with law on merits within six weeks, ignoring delay and laches, after opportunity to all stakeholders.	

M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. & Another

2012 (1) ADJ 296 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-071 M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.	Court	Followed	A meter manufacturer's own lab cannot be an 'independent laboratory'; testing by the manufacturer amounts to making a person judge in his own cause, given its commercial interest in defending its product's tamper-proof reputation.	Followed and quoted at length. paras 33, 36
SCJ-114 Saurabh Agrawal & Another v. State of U.P. & Others	Court	Followed	Clause 5.6(d) mandates a specific procedure before meter testing — information to the consumer of the proposed testing date, an opportunity to be present (personally or through a representative), obtaining signature if present, and a right to dispute the testing under Clause 5.6(c).	Applied to hold the meter-testing procedure was not followed, undermining the theft allegation.
SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others	Court	Followed	Same Clause 5.6 meter-testing requirement before finalising an assessment premised on a defective/missing meter.	Followed alongside Amrawati Devi.
SCJ-161 Rituraj v. State of U.P. & Others	Petitioner	Followed	A report of a laboratory that is not independent — in particular the meter manufacturer's own lab — cannot be relied upon; the manufacturer cannot be a judge in its own cause and its lab is not an 'independent laboratory'.	Followed and quoted (paras 48-52) on the manufacturer-lab point. 5

M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.

2011 (9) ADJ 239 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Followed	Mens rea is not a requirement for a Section 126 civil assessment, as distinct from a Section 135 criminal prosecution.	Agreed with and followed on the s.126/s.135 mens rea distinction. para 23

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Followed	Detailed technical description of the Secure Meter system (Consumer Energy Meter, Meter Reading Instrument, Base Computer Software) and its tamper-logging capability.	Relied on (a companion judgment by the same Judge, five days earlier) for the technical background of the Secure Meter. para 26
SCJ-069 M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.	Petitioner	Followed	(Cited for the paras 78-80 discussion of assessment procedure in theft-based cases.)	Followed/referred. para 5
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Respondent	Followed	Use of electricity through a tampered meter constitutes 'unauthorised use of electricity' under s.126 Explanation (b), for which assessment can be made, while simultaneously constituting theft under s.135(1)(d), permitting parallel criminal proceedings.	Followed for the overlapping-but-parallel operation of ss.126 and 135.
SCJ-121 Shri Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Followed	Clauses 8.1 and 8.2 of the Supply Code, 2005 (not Clause 6.8) govern assessment where theft of electricity under s.135 is alleged; the specific provision prevails over the general where two provisions cover overlapping fields.	Followed as the controlling precedent on which Supply Code procedure governs theft assessment.
SCJ-3107 M/S Barnala Steel Industries Ltd. v. State of U.P. & Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	
SCJ-3108 M/S Prem Steels (Pvt.) Ltd. v. State of U.P. and Others	Petitioner	Relied on	Relied on by the petitioner for paras 78, 79 and 80; the Court listed the decision but did not independently discuss those paragraphs.	
SCJ-3109 M/S M.Q. Steels (Pvt.) Ltd. v. State of U.P. & Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	
SCJ-3110 M/S Vehlna Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3111 M/S Amba Steels (A Unit Of K.K.Steel Products Ltd.) v. State of U.P. And Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	
SCJ-3112 M/S R.A. Castings (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	
SCJ-3113 M/S Avadh Alloys Pvt. Ltd. v. State of U.P. & Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	
SCJ-3114 M/S Aswad Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Referred	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.	
SCJ-3209 Gufaran v. Paschimanchal Vidyut Vitran Nigam Limited And 2 Others	Petitioner	Referred	Cited by the petitioner for the contention that the 4 July 2019 show-cause notice was not in accordance with section 126; the Court did not apply or extract its ratio and left any such objection to a reply before the Assessing Officer.	

M/s Paliwal Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Others

2009 (7) ADJ 455 (DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-069 M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and the consumer has a right of appeal.	Followed. para 7

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Respondent	Followed	Theft of electricity under s.135 is also 'unauthorised use of electricity' for which assessment under s.126 is contemplated and mandatory; the s.135(1A) third proviso (restoration on payment of the 'assessed amount') presupposes a s.126 assessment; a Supply Code procedural provision cannot take away the substantive s.127 right of appeal.	Followed as the controlling Division Bench precedent (with one member common to the present Bench).
SCJ-3107 M/S Barnala Steel Industries Ltd. v. State of U.P. & Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	
SCJ-3108 M/S Prem Steels (Pvt.) Ltd. v. State of U.P. and Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases and a person has a right of appeal (para 28, quoted).	
SCJ-3109 M/S M.Q. Steels (Pvt.) Ltd. v. State of U.P. & Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	
SCJ-3110 M/S Vehlna Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	
SCJ-3111 M/S Amba Steels (A Unit Of K.K.Steel Products Ltd.) v. State of U.P. And Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	
SCJ-3112 M/S R.A. Castings (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	
SCJ-3113 M/S Avadh Alloys Pvt. Ltd. v. State of U.P. & Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3114 M/S Aswad Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.	

Smt. R.S. Khan v. State of U.P. & Ors.

2005 All. C.J. 985 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-047 Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.	Petitioner	Referred	Cited by the petitioner regarding the 2004 assessment proceedings and subsequent orders in the connected writ litigation.	Noted as part of the petitioner's procedural history/background; not determinative. unnumbered order

M/s Shokumbhari Pulp & Paper Mills Ltd. v. U.P. Power Corporation Ltd. & 3 others

2014 (4) ADJ 225 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3144 M/S Panem Castings Pvt. Ltd. v. U.P. Power Corporation Ltd. & 3 Others	Petitioner	Followed	Writ Petition No. 13514 of 2014, decided 1.4.2014, finally determined the controversy as to applicability of the revised tariff rates determined by the U.P. Electricity Regulatory Commission on 19.10.2012, published on 23.10.2012 and notified on 25.10.2012; an identical challenge is allowed on the same terms.	

M/s Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd.

Writ-C No. 12076 of 2004 (order dated 14.12.2016) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-552 Prakash Chandra Gupta v. State of U.P. & 2 Others	Petitioner	Relied on	Recited in a 11.5.2023 listing order: Division Bench allowed the writ, relying on Amrawati Devi, Balwant Spinning Mills and Tata Hydro, and set aside a demand dated 19.02.2004 and a recovery bill of Rs. 5,93,227. Not applied in the reserved reasons.	

Abdul Gani & Anr. v. State of U.P. & Ors.

Civil Misc. Writ Petition No. 15498 of 2008 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	An assessment made only on the allegation of a tampered meter seal, without any evidence of how the seal was tampered or theft was effected, cannot stand.	Distinguished on facts — unlike Abdul Gani, here there was affirmative evidence (naked conductor, MRI anomalies) of the manner of theft. para 22

Abdus Salam @ A. Salam v. Election Commission of India

2004 (55) ALR 12 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Respondent	Referred	There is nothing rigid about natural justice; the duty to hear does not always mean affording a personal hearing.	Referred (respondent's line). 63

Ajit Singh @ Muraha v. State of U.P. and others

2006 (56) ACC 433 · Allahabad High Court (Full Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-102 Pawan Kumar Laur v. State of U.P. & Others	Court	Followed	Reiterates the Bhajan Lal/Satya Pal standard that FIR quashing/stay of arrest is warranted only where no cognizable offence is ex-facie discernible or a statutory restriction on investigation exists.	Followed as the controlling Full Bench authority.
SCJ-3081 Pawan Kumar Laur v. State of U.P. and others	Court	Followed	There can be no interference with investigation or order staying arrest unless a cognizable offence is not ex-facie discernible from the FIR or a statutory restriction operates on the power of the police to investigate.	Followed as the controlling Full Bench, which had reiterated Satya Pal after considering Bhajan Lal.

Allahabad Inter Prises v. State of U.P.

Writ-C No. 2788 of 2013 (Allahabad HC, DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-026 Executive Engineer, Electricity Urban Distribution Division v. The Electricity Ombudsman & 2 Others	Court	Followed	A 'Protective Load' charge cannot be raised in the absence of any option exercised by the consumer for that facility.	Followed to hold the protective-load demand unsustainable. 60

Ashim @ Hassim v. State of U.P. & Another

Criminal Misc. Writ Petition No. 18729 of 2023, decided 2 December 2023 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-278 Satish Kumar Bharti alias Chhotu v. State of U.P. & 2 Others	Petitioner	Distinguished	(Relied on by the applicant for the need to specify which of several statutory offences is charged.)	Distinguished — it concerned the Gangster Act, where the different offences have an entirely different connotation; it does not govern s.135(1)(a)–(e), which share one punishment and define theft. 6, 10

Ashok Kumar v. State of U.P.

2008 (6) ADJ 660 (DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-040 Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.	Petitioner	Distinguished	Where the challenge to a Section 126 assessment involves purely legal/jurisdictional issues (including the vires of a notification), which the assessing officer or the s.127 appellate authority cannot decide, the writ petition is entertained without relegating the party to the alternative remedy.	Distinguished — inapplicable to a pure factual challenge with no vires/jurisdictional issue. unnumbered order

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-048 Latif v. State of U.P. & Ors.	Court	Followed	Clause 6.8 of the Supply Code, 2005 prescribes a mandatory, detailed procedure (inspection report, show-cause notice with 15 working days to reply, personal hearing, and a speaking final order) for assessing unauthorised use of electricity under Section 126; before recording a conclusion of unauthorised use, the consumer must be given an opportunity of hearing, failing which the assessment/notice is illegal and violates natural justice and Article 14.	Followed and applied in full — the impugned bill-cum-notice and demand notice were set aside for non-compliance with the Clause 6.8 procedure as laid down in Ashok Kumar. paras 2-5, quoting Ashok Kumar paras 56-64, 77-78
SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Distinguished	Before making a theft-based assessment, the Assessing Officer must inform the consumer of the manner in which he is alleged to have unauthorisedly extracted electricity.	Distinguished on facts — the requirement was held satisfied since the checking report itself disclosed the manner (naked conductor at LT mains bracket); the consumer's failure to explain it defeated his reliance on Ashok Kumar. para 20
SCJ-057 M/S Kissan Chilling Udyog & Anr. v. State of U.P. & Ors.	Court	Followed	Clause 6.8 of the Supply Code, 2005 prescribes a mandatory procedure (inspection report, show-cause notice, hearing, speaking final order) for a Section 126 unauthorised-use assessment; the consumer must be told the manner of the alleged unauthorised use before condemnation.	Followed and applied; the impugned orders were quashed for non-compliance and misreading of the underlying checking report. paras 14, 18, quoting Ashok Kumar paras 56-64, 77-78

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Followed	Explains the Secure Meter's technical features (tamper/fraud detection and logging via MRI) and lays down the mandatory Clause 6.8 procedure (inspection report, notice, hearing, speaking final order) for unauthorised-use assessments; technical opinions causing serious stigma/fiscal liability must be proved with cogent, disclosed material, not accepted uncritically.	Followed and extensively relied on for both the Clause 6.8 procedure and the Secure Meter technical background. paras 27, 54
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	A writ is entertained without relegation to the alternative remedy where a purely legal/jurisdictional issue (e.g. validity of the notification appointing the assessing officer) is raised, which the assessing/appellate authority cannot decide.	Distinguished — no jurisdictional/vires issue was raised here, only a factual challenge to the assessment already considered by the authority. unnumbered order
SCJ-069 M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	Followed. para 6
SCJ-070 M/S Urmila Oil Industries v. U.P. Dakshinanchal Vidyut Vitran Nigam & Ors.	Petitioner	Followed	Clause 6.8 of the Supply Code prescribes a mandatory procedure (inspection report, show-cause notice, hearing, speaking final order) for an unauthorised-use/theft assessment, requiring disclosed, cogent reasons for a conclusion of theft.	Followed and applied to quash an assessment resting on mere 'possibility' of theft without Clause 6.8 compliance. paras 8-9
SCJ-071 M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.	Court	Followed	Lays down the mandatory Clause 6.8 procedure for a theft-based assessment.	Followed; the assessment procedure was found not to have been complied with in this case either. para 37

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Court	Followed	'Unauthorised use of electricity' under Explanation (b) to s.126 also covers acts/omissions constituting an offence under s.135; the assessing officer must give an opportunity of hearing before concluding unauthorised use, since the allegation can amount to a serious (offence-adjacent) matter.	Followed for the genus/species relationship between ss.126 and 135 and the natural-justice requirement.
SCJ-112 Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others	Both parties	Followed	A writ petition may be entertained despite an available alternative remedy where the issues raised are purely legal and involve a jurisdictional question.	Relied on by the licensee to justify its compliance with directions in that case; also relied on by the petitioner to support writ maintainability.
SCJ-117 Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Court	Followed	A fair opportunity of hearing is required before an assessing officer records a conclusion of unauthorised use of electricity.	Followed as supporting authority for the natural-justice requirement.
SCJ-121 Shri Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.	Court	Followed	A show-cause notice for unauthorised-use assessment must communicate the material relied upon with sufficient detail so the consumer can understand and respond to the charge.	Cited (via the pari materia Clause 6.8 analogy) for the content-sufficiency requirement of a show-cause notice.
SCJ-154 Arup Kumar Mitra v. State of U.P. & Others	Court	Referred	Lays down the requirement that an assessing authority pass a proper reasoned order in electricity assessment matters in accordance with law.	Referred; the officer undertook to make compliance by passing a reasoned order 'in accordance with law laid down by this Court in various cases, including Ashok Kumar', on the basis of which the Court declined to initiate contempt.

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-159 Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr.	Respondent	Referred	On the s.126 assessment procedure and the safeguards attending an allegation of unauthorised use/theft of electricity.	Cited by the respondent (paras 59-61); noted. (This is the case digested in the corpus as SCJ-158.) 9
SCJ-176 Rakesh v. State of U.P. & 3 Others	Court	Followed	A provisional/UUE assessment under s.126 read with Clause 6.8 requires a proper notice, opportunity of hearing and a speaking order.	Followed; the fresh assessment was directed to conform to it. (Digested in the corpus as SCJ-158.) 11-12
SCJ-189 Shri Krishna Kumar Bhargava v. State of U.P. & 4 Others	Petitioner	Referred	A s.126 assessment must follow the prescribed procedure — a proper final assessment order preceded by opportunity, not a show-cause notice treated as final with recovery pursued upon it.	Cited by the petitioner as violated (demand notice predating the final assessment); a prima facie case found and recovery stayed. (Digested in the corpus as SCJ-158.) 3
SCJ-192 Ram Prakash Yadav v. State of U.P. & 3 Others	Court	Followed	Paras 56-64 set out the Code 2005 procedure to be followed for a theft assessment - recording of satisfaction, a proper provisional assessment, opportunity and a reasoned final order.	Followed; the fresh assessment was directed to conform to it. (Digested in the corpus as SCJ-158.) (order)
SCJ-193 Yogendra Singh v. Dakshinanchal Vidyut Vitaran Nigam Ltd. & 3 Others	Court	Followed	Paras 56-64 set out the Code 2005 procedure to be followed for a theft assessment - recording of satisfaction, a proper provisional assessment, opportunity and a reasoned final order.	Followed; the fresh assessment was directed to conform to it. (Digested in the corpus as SCJ-158.) (order)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-285 M/s Sangam Crusher Works & Another v. State of U.P. & 3 Others	Petitioner	Followed	Before a conclusion of unauthorised use under s.126, the consumer must be told the manner of the alleged use and given an opportunity of defence; a citizen cannot be indicted of unauthorised use (which may also be an offence under s.135) on the vagaries of the licensee's officers. Stern measures against theft do not justify condemnation without that minimum hearing (paras 56–60).	Relied on by the petitioner (paras 56–60 quoted). Applied: in the absence of a positive act of unauthorised use by artificial means found on the spot, no presumption of theft/UUE, and the officers' inference of future possibility cannot found an assessment. 10, 17
SCJ-286 M/s K.G.N. Stone Crusher Mill & Another v. State of U.P. & 3 Others	Petitioner	Followed	Before a conclusion of unauthorised use under s.126, the consumer must be told the manner of the alleged use and given an opportunity of defence; a citizen cannot be indicted of unauthorised use (which may also be an offence under s.135) on the vagaries of the licensee's officers. Stern measures against theft do not justify condemnation without that minimum hearing (paras 56–60).	Relied on by the petitioner (paras 56–60 quoted). Applied: in the absence of a positive act of unauthorised use by artificial means found on the spot, no presumption of theft/UUE, and the officers' inference of future possibility cannot found an assessment. 11, 18
SCJ-630 M/S I.G. Shoes Pvt. Ltd. v. U.P. Electricity Corporation Ltd. & Others	Court	Followed	Proper notice must be given to the consumer; the Assessing Authority (Executive Engineer) must then pass a speaking and reasoned order; if the consumer appeals, the Appellate Committee must also pass a reasoned order.	Followed. The Court held that the Executive Engineer had neither served a proper notice nor made a speaking assessment as required by Ashok Kumar, and that the Appellate Committee's order was likewise non-speaking; both orders were set aside. 5-7

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-635 Smt. Ranjana Gupta v. Executive Engineer (Distribution), Asst. General Manager & Anr.	Court	Followed	Before a provisional assessment under s.126 the assessing officer must disclose the alleged manner of unauthorised use and hear the consumer, then record the UUE conclusion; a separate opportunity is required before final assessment on quantum. Unauthorised use overlapping s.135 cannot be found on the officer's vagaries without a hearing.	Followed. Paras 58-60 quoted in full; the assessing officer was directed to complete that two-stage procedure within two months. unnumbered order
SCJ-644 M/S Mahavir Iron Foundry And Another v. Dakshinanchal Vidyut Vitran Nigam Ltd. And Others	Court	Followed	Before making a provisional assessment the assessing officer must afford an opportunity on the allegation of unauthorised use and record a conclusion of unauthorised use, which confers jurisdiction to issue the provisional notice; a distinct opportunity is required before final assessment on quantum (para 58, as quoted).	Followed. Quoted at para 58; held that natural justice was not observed and that no show-cause was issued before the provisional assessment. unnumbered
SCJ-674 Smt. Kalpana Agarwal v. Managing Director, Western Electricity & Others	Court	Followed	Before a valid Section 126 assessment the assessing officer must afford an opportunity on the allegation of unauthorised use and record a conclusion of unauthorised use, which confers jurisdiction to issue the provisional notice; a distinct opportunity is required before final assessment on quantum. Clause 6.8 of the Supply Code, 2005 prescribes the inspection-report, show-cause, personal-hearing and speaking-order sequence (paras 56–64, as quoted).	Followed. Quoted at paras 56–64. Licensee's counsel could not dispute that the impugned demand was in conflict with Ashok Kumar; the 02.11.2007 assessment was set aside. 11-13
SCJ-710 Satish Kumar Sharma v. State of U.P.	3-5	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-753 Shailendra Kumar v. State of U.P.	2	Referred		
SCJ-825 Rajendra Kumar Gupta v. DVVNL	2	Referred		
SCJ-869 M/S Prem Steel (Pvt.) Ltd. v. U.P. Power Corporation Ltd.	petitioner	Referred		
SCJ-1001 Shyamveer Singh v. State of U.P.	1	Referred		
SCJ-1060 M/s Rukmani Ferro Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.	Petitioner	Referred	Before coming to the conclusion that there has been unauthorised use of electricity, an opportunity is required to be given to the consumer (relied on with reference to paragraphs 56 and 58).	Referred as the petitioner's authority; the Court did not decide the point, leaving it to be raised before the competent authority. p. 3
SCJ-1207 Siddharth Rai v. State of U.P.	4	Referred		
SCJ-1226 Unserved theft provisional assessment: recovery quashed for want of 6.8(b) opportunity	4, 7	Referred		
SCJ-1227 Theft citation quashed for want of 6.8(b) opportunity	1	Referred		
SCJ-1236 Rakesh Kumar v. State of U.P.	unnumbered	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1249 Vikramaditya Sharma v. State of U.P.	1	Referred		
SCJ-1250 Rakesh Sharma v. State of U.P.	5-6	Referred		
SCJ-1251 Rajesh Sharma v. State of U.P.	1	Referred		
SCJ-1254 Veerendra Singh v. State of U.P. and others	1	Referred		
SCJ-1329 Swati Kakkar v. Paschimanchal Vidyut Vitran Nigam Limited And Another	order dated 27.10.2017 para 1	Referred		
SCJ-1353 Akbar v. Pashchimanchal Vidyut Vitran Nigam Ltd.	5	Referred		
SCJ-1354 Bahabuddin @ Raju v. Pashchimanchal Vidyut Vitran Nigam Ltd.	5,7	Referred		
SCJ-1411 Manoj Singh v. Purvanchal Vidyut Vitran Nigam Ltd.	2	Referred		
SCJ-1414 Rakesh Khandelwal v. Dakshinanchal Vidyut Vitran Nigam Ltd.	4	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1424 Hanuman Prasad v. State of U.P. — Clause 6.8(b) notice must fix a hearing date	1	Referred		
SCJ-1426 Mohan Sharma v. Dakshinanchal Vidut Vitran Nigam Ltd.	1	Referred		
SCJ-1436 Pavan Kumar v. Dakshinanchal Vidut Vitran Nigam Ltd.	1	Referred		
SCJ-1438 Om Pal Singh v. Chairman/Managing Director, U.P.P.C.L.	1	Referred		
SCJ-1439 Jagat Singh v. State of U.P.	1	Referred		
SCJ-1442 Chhotu @ Arun Kumar Singh v. State of U.P.	6,9	Referred		
SCJ-1443 Smt. Geeta Maurya v. Poorvanchal Vidyut Vitran Khand-2	5	Referred		
SCJ-1446 Arjun Kumar v. State of U.P.	1	Referred		
SCJ-1447 Sudha Kashmiri v. Executive Engineer, Electricity Distribution Centre	5	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1449 Mohar Singh v. State of U.P.	5,8	Referred		
SCJ-1454 Smt. Afifa Fatima v. State of U.P.	8	Referred		
SCJ-1457 Mohd. Javed Naiyer v. Kanpur Electricity Supply Co. Ltd.	1-2	Referred		
SCJ-1462 Mahendra Dubey v. U.P.P.C.L.	5,8	Referred		
SCJ-1469 Ved Prakash Soni v. Executive Engineer, Electricity Distribution Division	court	Referred		
SCJ-1584 Ram Sumer Singh v. State of U.P.	unnumbered	Referred		
SCJ-1590 Uma Shankar Yadav v. State of U.P.	Court	Referred		
SCJ-1595 Harminder Singh v. State of U.P. & Ors.	3	Referred		
SCJ-1603 Ashish Gupta v. State of U.P. (Clause 6.8(b) notice without hearing date)	5	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1606 Shiv Shankar v. U.P. Power Corporation	1	Referred		
SCJ-1613 Awadhesh Kumar Upadhyay v. U.P. Power Corporation Ltd.	1	Referred		
SCJ-1618 Raju Jaiswal (Rajiv Jaiswal) v. State of U.P.	1	Referred		
SCJ-1620 Satyanarayan v. State of U.P.	court	Referred		
SCJ-1709 Smt. Chhaya Gupta v. State of U.P.	1	Referred		
SCJ-1715 Munna Lal v. State of U.P.	4	Referred		
SCJ-1732 Prahlad Singh v. State of U.P. and another	6, 9	Referred		
SCJ-1733 Virendra Singh v. State of U.P.	6	Referred		
SCJ-1734 Tilak Singh v. State of U.P.	1	followed	Provisions of the Electricity Supply Code, 2005 to be followed in a case of theft of electricity for assessment; fresh assessment to be made in light of those observations.	
SCJ-1735 Mahendra Singh v. State of U.P.	court	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1736 Ravi Prakash Tiwari v. State of U.P.	6, 9	Referred		
SCJ-1744 Shyam Kumar v. Madhyanchal Vidyut Vitaran Nigam Ltd.	Court	Referred		
SCJ-1765 Munna Lal v. State of U.P.	1	Referred		
SCJ-1779 Manoj v. State of U.P.	5, 8	Referred		
SCJ-1815 Chandra Prakash Yadav v. State of U.P.	5	Referred		
SCJ-1849 Ram Prakash @ Pappu Singh v. State of U.P.	1	Referred		
SCJ-1869 Sahabuddin v. State of U.P.	5,8	Referred		
SCJ-1878 Meenu Gupta v. State of U.P.	1	Referred		
SCJ-1879 Mukul Pandey v. State of U.P.	4	Referred		
SCJ-1888 Raj Bahadur v. State of U.P.	5,8	Referred		
SCJ-1889 Ram Bihari v. State of U.P.	Court	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1907 Akhlak Ahmad @ Sundar v. State of U.P.	7-9	Referred		
SCJ-1915 Demand and citation quashed for breach of clause 6.8(b) hearing procedure	1	Referred		
SCJ-1918 Brijesh Singh v. Purvanchal Vidyut Vitran Nigam Ltd.	1	Referred		
SCJ-1922 Dharnidhar v. State of U.P. & Anr.	5	Referred		
SCJ-1923 Gabboo Singh v. State of U.P. and Anr.	unnumbered	Referred		
SCJ-1924 Ram Mohan v. State of U.P.	5, 8	Referred		
SCJ-1925 M/s R.Ratansheet Grah Private Limited v. State of U.P.	1	Referred		
SCJ-1938 Hari Nath Yadav v. State of U.P.	Court	Referred		
SCJ-1982 Ramanuj Tripathi v. State of U.P. & Others	Court	Followed	The provisions of the U.P. Electricity Supply Code, 2005 to be followed in a case of theft of electricity for assessment (paras 56 to 64).	Followed; the fresh final assessment was directed to be made in the light of the observations in Ashok Kumar. 7, 9

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1987 Anmol Laghu Udyog v. D.V.V.N. Agra & Another	Petitioner	Followed	Non-compliance of Paragraph 6.8 of the U.P. Electricity Supply Code, 2005 vitiates the proceeding as well as the demand notice issued pursuant thereto; the dictum has been reaffirmed and reiterated in subsequent Division Benches.	Followed; the recovery notice was quashed for non-compliance with Para 6.8 on the authority of Ashok Kumar. order of 30.11.2016
SCJ-2014 Ram Chandra v. State of U.P.	petitioner	Referred		
SCJ-2015 Gulab Keshari v. State of U.P.	petitioner	Referred		
SCJ-2195 Jag Dev Prasad v. State of U.P. & 4 Others	Petitioner	Referred	On the procedure prescribed by law for assessing unauthorised use of electricity, and the distinction between 'service' of notice and the assessee merely 'having knowledge' of the proceedings — mere knowledge of the assessment proceedings does not amount to compliance with the prescribed procedure.	Cited by the petitioner for the service-versus-knowledge distinction; the Court did not rule on the procedural challenge, leaving the factual question of service to be pursued before the assessing authority. p. 3, 4
SCJ-2197 Rishikesh Vishwakarma v. State of U.P. & 2 Others	Court	Relied on	Considers, at paras 56 to 64, the provisions of the U.P. Electricity Supply Code, 2005 to be followed in a case of theft of electricity for assessment, including the opportunity of hearing and the requirement of a reasoned final assessment order.	Relied on order of 3.4.2017
SCJ-2213 M/S Malhotra Ice Factory v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Another	Petitioner	Relied on	The controversy regarding the assessment stood concluded by this Division Bench decision; on its authority the impugned assessment was quashed and the matter remitted to the assessing authority to proceed afresh in accordance with its observations.	Relied on order of 9.11.2009 (WP 8029/2007, extracted in the judgment)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2306 Raj Kumar v. State of U.P.	3, 5	Referred		
SCJ-2314 Raju Kumar Gupta v. State of U.P. (s.126 assessment quashed for Para 6.8 non-compliance)	4	Referred		
SCJ-2317 Ameer Hamja v. State of U.P.	2-3	Referred		
SCJ-3096 Hafeez v. State of U.P. & Others	Court	Followed	Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity.	Followed — the Court applied those paragraphs as the Code procedure for theft assessment and directed the fresh final assessment in the light of that decision.
SCJ-3107 M/S Barnala Steel Industries Ltd. v. State of U.P. & Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	
SCJ-3108 M/S Prem Steels (Pvt.) Ltd. v. State of U.P. and Others	Petitioner	Followed	Assessment on account of theft, which is to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127 (para 58).	
SCJ-3109 M/S M.Q. Steels (Pvt.) Ltd. v. State of U.P. & Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	
SCJ-3110 M/S Vehlna Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3111 M/S Amba Steels (A Unit Of K.K.Steel Products Ltd.) v. State of U.P. And Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	
SCJ-3112 M/S R.A. Castings (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	
SCJ-3113 M/S Avadh Alloys Pvt. Ltd. v. State of U.P. & Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	
SCJ-3114 M/S Aswad Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Petitioner	Followed	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.	
SCJ-3147 Mahaveer v. Pashchimanchal Vidhyut Vitran Nigam Ltd. & 2 Others	Court	Followed	Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity; a fresh final assessment is to meet the consumer's objections with reasons in that light.	
SCJ-3149 Mukesh Kumar Sharma v. Dakshinanchal Vidyut Vitran Nigam Ltd. & 5 Others	Court	Followed	Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity; a fresh final assessment is to meet the consumer's objections with reasons in that light.	
SCJ-3165 Ravi Kant Pandey v. State of U.P. & 3 Others	Court	Followed	Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity; a fresh final assessment is to meet the consumer's objections with reasons in that light.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3166 Som Pal Singh v. State of U.P. & 3 Others	Court	Followed	Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity; a fresh final assessment is to meet the consumer's objections with reasons in that light.	
SCJ-3179 Chitrapal v. State of U.P. And 3 Others	Court	Followed	A final assessment order has to be passed; recovery cannot rest on a provisional assessment treated as final.	
SCJ-3183 Vijay v. State of U.P. & 2 Others	Court	Followed	Assessment and recovery of alleged electricity dues without following the procedure prescribed by the Supply Code, 2005, and without observing natural justice, is illegal.	
SCJ-3209 Gufaran v. Paschimanchal Vidyut Vitran Nigam Limited And 2 Others	Petitioner	Referred	Cited by the petitioner, with Mohit Paper Mills, for the same contention that the show-cause notice did not accord with section 126; the Court did not apply or extract its ratio and left any such objection to a reply before the Assessing Officer.	
SCJ-3221 Kamaluddin v. State of U.P. And 4 Others	Petitioner	Relied on	Cited by the petitioner for the requirement that the assessing officer pass a speaking order in compliance with Para 6.8 of the Electricity Supply Code, 2005.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	

Ashok Kumar v. State of U.P.

2008 (72) ALR 43 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-165 Kamil v. State of U.P. & Others	Court	Relied on	A provisional/UUE assessment under s.126 read with Clause 6.8 requires a recorded conclusion of unauthorised use and an opportunity of hearing at the appropriate stages; an assessment de hors that procedure is illegal.	Relied on as directly supporting the view taken. (Digested in the corpus as SCJ-158.) 16

Ashok Kumar v. State of U.P.

2008 (5) ALJ 383 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-706 M/S Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd. And Others	Petitioner	Relied on	Relied on by the petitioner for the proposition that, where the MRI was not served, the assessment is in violation of natural justice and the consumer cannot be insisted upon to take the statutory remedy.	Cited by the petitioner in rejoinder; the Court decided the maintainability point on Whirlpool rather than by applying this decision in terms.

Benarsi Silk Palace v. Commr. of Income Tax

[1964] 52 ITR 220 (All) · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	Jurisdiction can be conferred only by statute, not by consent or acquiescence — an assessee cannot confer jurisdiction on the Income Tax Officer by waiving a statutory notice requirement.	Relied on for the no-jurisdiction-by-consent principle in a taxation analogy. para 23

Bhupendra Singh @ Bhupendra Singh Chauhan v. State of U.P. and 2 Others

order dated 22.8.2019 (Division Bench) · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3293 Vishal Chawla v. Consumer Grievance Redressal Forum, Purvanchal Vidyut Vitran Nigam Ltd. & Another	Respondent	Referred	Relied on by the licensee for maintainability. As recited, the consumer was found using electricity unauthorisedly, agreed to a compounding fee of Rs. 20,000 to avoid prosecution under Section 135, was provisionally assessed at Rs. 1,27,295, and challenged a demand notice dated 23.05.2019 for both sums on the plea that compounding ended further liability. The Bench observed: 'The argument is completely misconceived inasmuch as payment of compounding fee is in respect of offence of theft is altogether distinct from unauthorized use of electricity for which the petitioner is liable to pay as per assessment.' This Court did not apply that observation.	

Srichand Jain v. State of U.P. and others

2007 (2) AWC 1560 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3201 M/S Hind Industries Ltd And Another v. The Commissioner Meerut And 4 Others	Petitioner	Relied on	Relied on by the petitioner with Clause 8.2(x)(g) and (h); the Court did not discuss the decision.	

Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow & Ors.

Writ Petition No. 4237 (MS) of 2008, decided 6.1.2012 · Allahabad High Court (Lucknow Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Respondent	Followed	Clause 8 of the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007, in so far as it permits a licensee to represent to the Ombudsman against a CGRF order, is bad in law.	Followed — held to squarely cover and dispose of the licensee's representation route. para 29

Dhani Ram v. Chief Engineer, Raj Ghat Project Betwa River Board

(2013) 5 ADJ 691 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-164 Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others	Petitioner	Referred	On declining to relegate a long-pending, fully-pleaded writ to the alternative remedy.	Cited in support of deciding the writ on merits. 14

Dhirendra Kumar Rai v. State of U.P.

2010 (28) LCD 1248 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-116 Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors.	Court	Followed	Surveys precedent on suspension power under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, holding suspension warranted only for allegations serious enough to attract major penalty if established.	Followed as the controlling survey of the applicable suspension standard.

Diwakar Dutt Bhatt v. Life Insurance Corporation of India

(1998) 2 UPLBEC 1154 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-164 Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others	Court	Referred	The bar of alternative remedy is a matter of self-imposed discipline; where the petition was entertained and pleadings exchanged, it is inexpedient to dismiss it on that ground.	Noticed within the quoted Roshan Lal extract. 15

Dr. Munni Lal v. State of U.P. and others

2011 (6) ADJ 650 (DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3120 Ismail v. Paschimanchal Vidyut Nigam Ltd. & Others	Petitioner	Relied on	Cited by the petitioner on the plea that a demand and recovery issued before a final assessment, and without a hearing, were contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; the Court recorded the citation, admitted the writ, and did not apply the decision.	

Executive Engineer, Electricity Urban Distribution Division, Allahabad v. Electricity Ombudsman (Appellate Authority) and others

2015 (2) ADJ 196 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2642 Executive Engineer / Assessing Authority, Urban Electricity Distribution Division v. Commissioner, Kanpur Region / Appellate Authority & Another	Respondent	Referred	Cited for the objection that the writ petition did not make a correct array of parties.	Cited by respondent no. 2 on maintainability at the outset; the objection was met by the petitioner filing an amendment application correcting the array of parties, which was allowed on 15.11.2018 as formal. order of 23.10.2018; order of 15.11.2018

Ghanshyam Gupta v. United India Insurance Co. Ltd. & Ors.

Civil Misc. Writ Petition No. 53188 of 2011, decided 14.9.2011 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Referred	Follows the same marginal-heading-not-aid-to-construction principle.	Referred as a recent application of the same principle by the same Court. para 44

Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitran Nigam Ltd.

2011 (10) ADJ 261 (DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-117 Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Court	Followed	Same procedural-fairness principle for s.126/Clause 8.1 assessment.	Followed as supporting authority.

Heinz India Pvt. Ltd. v. State of U.P.

2012 (4) AWC 3662 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	Judicial review of administrative action is confined to legality, procedural propriety, and Wednesbury unreasonableness — illegality, irrationality, procedural impropriety, or abuse of power.	Held inapplicable — none of the five grounds of judicial review was shown to be violated. unnumbered order

Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others

Criminal Misc. Writ Petition No. 265 of 2023, decided 6.2.2013 (as cited) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-278 Satish Kumar Bharti alias Chhotu v. State of U.P. & 2 Others	Respondent	Doubted	The 24-hour requirement in the second proviso to s.135(1-A) is directory; no consequences are specified for its breach.	Held per incuriam and not a binding precedent, because it did not notice s.57 of the Act or Clause 8.2 of the Code, which do specify consequences. (The citation as given is internally inconsistent: a 2023 writ number with a 2013 decision date — recorded as the judgment states it.) 7, 10-11

Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors.

2006 (5) AWC 4436 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-060 M/S Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.	Court	Followed	Expounds the maxims lex non cogit ad impossibilia, impotentia excusat legem and nemo tenetur ad impossibilia (the law does not compel the impossible).	Followed to permit exceptional reliance on an outside/check meter for billing where the consumer's own meter cannot yield a reading. para 194

Kali Das Wadhwani & Anr. v. Jagjiwan Das & Anr.

1985 (2) ARC 533 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	Jurisdiction cannot be conferred by consent, acquiescence or waiver where there is none; these factors are relevant only to pecuniary/territorial jurisdiction, not inherent jurisdiction, the absence of which renders a decree a nullity.	Relied on. para 24

Kamil v. State of U.P. & Others

2016 (6) ADJ 11 (DB) · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-117 Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Court	Followed	Same procedural-fairness principle for s.126/Clause 8.1 assessment.	Followed as supporting authority.
SCJ-1987 Anmol Laghu Udyog v. D.V.V.N. Agra & Another	Court	Relied on	Where there is nothing on record to suggest the consumer was provided any provisional assessment bill and opportunity to file objections, or any date fixed for hearing his view point as prescribed under Para 6.8(b)(2) of the Code, 2005, the recovery cannot stand.	Relied on to similar effect as Ashok Kumar. order of 30.11.2016

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3065 Shri Madan Mohan Srivastava v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Relied on	Cited by the petitioner in support of the contention that a demand notice issued without a final assessment after opportunity of hearing is contrary to the Electricity Supply Code, 2005.	

Kapil Gupta v. U.P. Power Corporation Ltd. and another

Writ Petition No. 31023 of 2014 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3191 M/s Chaudhary Bhoop Singh Cold Storage (P) Ltd. v. State of U.P. and Others	Respondent	Relied on	Cited by the licensee as holding that against a final assessment the consumer has a remedy by appeal under Section 127 of the Electricity Act, 2003; the Court recorded the citation and did not relegate the writ to that appeal.	

Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. and Others

2012 (2) ADJ 509 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Respondent	Followed	In theft cases, the Clause 8.1 assessment procedure of the Supply Code, 2005 applies.	Followed as consistent authority for the Clause 8.1 procedure applying to theft assessments.
SCJ-2227 Shafi Ahmad v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another	Petitioner	Distinguished	On a consumer's acquittal in a theft case, the demand/assessment made by the licensee comes to an end and the connection is to be restored.	Distinguished ¶ 7, 9

Lalit Kumar Kapoor v. Kanpur Electricity Supply Company, Kanpur

2011 (10) ADJ 484 : 2012 (2) ALJ 63 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-211 Ram Bahadur v. State of U.P. & Others	Respondent	Distinguished	Where the period of unauthorised use could not be ascertained, the maximum period was used for the assessment.	Distinguished on the same basis. 13-14

LML Ltd., Kanpur v. State of U.P.

AIR 2001 Allahabad 321 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-094 Northern Coalfield Ltd. v. Chairman and Managing Director, U.P. Power Corporation Ltd. & Ors.	Court	Followed	A tariff approved by the Regulatory Commission alone can be implemented by a licensee, which has no power to alter or vary it; a licensee circular inconsistent with the approved tariff is void and inoperative.	Followed on the general principle (undisputed by both parties); its specific observations on restricted-hours surcharge were treated as obiter and not relied on, since that case did not involve a consumer who had in fact used power during restricted hours.

Maa Vind Vasini Industries v. Purvanchal Vidyut Vitran Nigam Ltd.

2008 (1) ADJ 75 : 2008 (2) ALJ 456 (DB) · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-158 Ashok Kumar & Ors. v. State of U.P. & Ors.	Court	Applied	The Clause 6.8 / s.126 procedure for assessing unauthorised use — recording and disclosing the evidence and affording a hearing — must be followed before a valid assessment/demand can be made.	Applied; the Court quoted paras 15-16 and followed it on the mandatory nature of the Clause 6.8 procedure. many (quoted at paras following 55)

Malhotra Ice Factory v. State of U.P. (Writ-C No. 8029 of 2007)

High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2858 Malhotra Ice Factory v. State of U.P. and 3 Others	Court	Referred	The petitioner's earlier writ, disposed of on 09.11.2009, quashing the assessment order dated 05.02.2007 and remitting the matter to the Assessing Authority to pass a fresh order, with liberty to test the meter.	Referred to as the order the respondents defied by passing no fresh assessment order and not testing the meter, which vitiated the impugned 27.07.2019 demand. order of 15.5.2023 para 3, 6

Mirzapur Electric Supply Company Limited v. State of U.P. & Ors.

AIR 1975 All 29 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1979 M/S K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.	Court	Relied on	Nature and consequences of security-deposit requirements under electricity supply law.	Relied on (through Tehri Girders) in characterising additional security and the consequence of its non-furnishing. 24.2.2011

Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.

(DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-064 M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr.	Petitioner	Distinguished	A tampered meter is also a 'defective meter' within Clause 5.6 (read with Clause 5.9(a)(ii)); where tampering (a foreign remote-sensing device) was not visible on inspection and was established only by a subsequent committee's opening of the meter, the consumer had a right under Clause 5.6(c)(iii) to independent testing.	Distinguished — that case involved tampering not obvious at inspection, established only by later test/committee report, unlike the patent tampering here. paras 21, 27

Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. (Civil Misc. Writ Petition No. 55384 of 2009)

Writ Petition No. 55384 of 2009, decided 30.05.2014 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-161 Rituraj v. State of U.P. & Others	Petitioner	Relied on	Clause 5.6 applies to tampered meters too and the Clause 5.6(c)(iii) testing-venue option must be offered before testing.	Relied on. (Digested in the corpus as SCJ-153.) 3
SCJ-2853 M/S Nageshwar Papers Limited v. Dakshinanchal Vidyut Vitran Nigam Limited and Another	Court	Followed	A Division Bench decision (dated 30.05.2014, against the same DVVNL) settling the consumer's Clause 5.6(c)(iii) rights on meter-testing choice and procedure.	Cited alongside Amrawati Devi as settling the issue; followed. p. 1

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3158 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Limited and Another	Court	Followed	Clauses 5.6 and 5.9 of the U.P. Electricity Supply Code, 2005 read together treat a meter tampered by the consumer as a defective meter; Clause 5.6 is therefore attracted and the licensee's contention that it is not is incorrect.	

Mohit Paper Mills Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.

2012 (2) ALJ 469 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	

Pankaj Kumar v. Kanpur Electric Supply Company and others

Civil Misc. Writ Petition No. 58317 of 2005, 23.9.2005 · Allahabad High Court (Single Judge)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-678 M/S Sri Dauji Cold Storage Pvt Ltd And Another v. Dakshinanchal Vidyut Vitran Nigam Ltd And Others	Petitioner	Relied on	Interpreting Section 126(6), assessment ought to have been made at one-and-a-half times the tariff and not three times as per the U.P. Electricity Supply Code, 2002.	Relied on by the petitioner. The Court recorded the holding but decided the writ by following Vijay Pal Singh. unnumbered order
SCJ-698 Raj Kumar v. KESCO and Others	Court	Followed	On an identical issue, assessment of unauthorised use/theft is at one-and-a-half times under Section 126(6), not at thrice the tariff under the 2002 Code.	Relied on by the petitioner. The Court held that the view it took finds support from this decision and allowed the writ. 4, 12

Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr.

Civil Misc. Writ Petition No. 4222 of 2009, decided 26.03.2010 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-069 M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.	Court	Followed	The 2003 Act's scheme does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso (restoration of supply on deposit of the 'assessed amount') presupposes an assessment under Section 126, covering all categories of unauthorised use including theft; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the theft assessment was correctly made.	Followed and quoted at length as the core reasoning. paras 8-9
SCJ-3107 M/S Barnala Steel Industries Ltd. v. State of U.P. & Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	
SCJ-3108 M/S Prem Steels (Pvt.) Ltd. v. State of U.P. and Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A) third proviso (restoration on deposit of the assessed amount) presupposes such an assessment; the Section 127 appellate power is co-extensive with the assessing authority's and extends to whether a theft assessment under paragraph 8.1 (or unauthorised use under paragraph 6.8) was correctly made.	
SCJ-3109 M/S M.Q. Steels (Pvt.) Ltd. v. State of U.P. & Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3110 M/S Vehlna Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	
SCJ-3111 M/S Amba Steels (A Unit Of K.K.Steel Products Ltd.) v. State of U.P. And Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	
SCJ-3112 M/S R.A. Castings (Pvt.) Ltd. v. State of U.P. And Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	
SCJ-3113 M/S Avadh Alloys Pvt. Ltd. v. State of U.P. & Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3114 M/S Aswad Steel & Alloys (Pvt.) Ltd. v. State of U.P. And Others	Court	Followed	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).	

Paschimanchal VVNL v. (owner) — judgment dated 18.11.2011 in Writ-C No. 20679 of 2010

Writ-C No. 20679 of 2010 (Allahabad HC, 18-11-2011) · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-179 Paschimanchal Vidyut Vitaran Nigam Ltd. & Anr. v. Commissioner, Moradabad Region & Anr.	Petitioner	Relied on	The owner of premises is a 'consumer' and can be assessed under s.135 for theft on the premises even if let out; the assessment there was valid; the appeal was remanded only to examine the acquittal under Clause 8.2(X)(G)&(H).	Relied on as the final judgment whose findings the Commissioner was bound by and could not reverse on the limited remand. 8-16

Pawan Kumar Agrawal v. State of U.P. & Others

Writ Petition No. 31019 of 2007, judgment dated 12.10.2007 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)	Petitioners (for discrimination plea)	Distinguished	M/s Laxmi Cotsyn Ltd. (a textile-dyeing industry) is not covered by Clause 3.4(a) and cannot be compelled to construct an independent feeder at its own cost; it is entitled to a new connection from the existing mixed feeder.	Distinguished as involving a non-Clause-3.4(a) industry, unlike the petitioners here who conceded coverage by Clause 3.4(a).

Petitioner's further catena on alternative remedy & disputed facts

Harbanslal Sahnia (2003) 2 SCC 107; Popcorn Entertainment (2007) 9 SCC 593; ABL International (2004) 3 SCC 553; Zonal Manager, Central Bank v. Devi Ispat (2010) 11 SCC 186; Gunwant Kaur (1969) 3 SCC 769; Century Spinning (1970) 1 SCC 582; Babubhai Muljibhai Patel (1974) 2 SCC 706; Arezzo Developers 2010 (6) ADJ 315; Oriental Bank of Commerce 2008 (3) ADJ 1; Ashok Kumar

2008 (6) ADJ 660; Himmatlal Harilal Mehta AIR 1954 SC 403; and, on levy requiring statutory authority, Ahmedabad Urban Development Authority (1992) 3 SCC 285, A.P. Pollution Board v. A.P. Rayons (1989) 1 SCC 44, Sri Niwas Budhaulia 2006 (1) AWC 930 · Supreme Court / Allahabad HC

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another	Petitioner	Referred	Cited by the petitioner for (a) alternative remedy being no bar and writ jurisdiction over disputed facts, and (b) a levy requiring specific statutory authority.	Listed by the petitioner; not individually engaged — the Court decided on the personal-hearing point. Recorded for the table of authorities. 45, 49

Prachi Leathers v. U.P. Power Corporation Ltd.

2003 (6) AWC 5665 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-094 Northern Coalfield Ltd. v. Chairman and Managing Director, U.P. Power Corporation Ltd. & Ors.	Court	Followed	Where power is taken surreptitiously/by theft (rather than under a licensee-sanctioned surcharge arrangement), a penalty rather than a mere surcharge is attracted.	Cited for the surcharge-versus-theft-penalty distinction.

Radha Krishna Cold Storage v. State of U.P. & Others

Writ Petition No. 19574 of 2008 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Court	Followed	An appeal under s.127 lies against an order that is in substance an assessment order under s.126, regardless of whether it is mislabelled as passed under s.135.	Followed to confirm s.127 appellate remedy is available for theft-related assessments.

Ram Bahadur v. State of U.P. and others

2016 (11) ADJ 463 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3191 M/s Chaudhary Bhoop Singh Cold Storage (P) Ltd. v. State of U.P. and Others	Petitioner	Relied on	Cited by the petitioner as holding that without compliance with the procedure of 'Section 6.3' and without an opportunity of hearing, no provisional or final assessment could be made; the Court recorded the citation, found no date of hearing on the licensee's papers, and did not apply the decision to quash the assessment.	

Rituraj v. State of U.P. and 3 Others

Writ-C No. 35477 of 2016, decided on 14 December 2017 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3292 Tarang Agrawal v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. & 2 Others	Petitioner	Referred	The petitioner relied on this decision, with the Electricity Supply Code, 2005, for the submission that the order of 3.2.2023 and the disconnection from 30.1.2023, without a final assessment after the provisional assessment notice of 4.6.2021, were unsustainable. The judgment does not recite what Rituraj held. The Court did not apply it; the writ was dismissed as infructuous.	
SCJ-3486 Umang Agrawal v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. and Others	petitioner	Referred		

Roshan Lal v. State of U.P.

2009 (9) ADJ 670 · Allahabad High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-164 Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others	Petitioner	Followed	Existence of an alternative remedy is a self-imposed discipline, not a jurisdictional bar; dismissing a writ on that ground long after filing and exchange of pleadings may shut out the alternative remedy itself and is to be avoided.	Followed and quoted (paras 7, 10, 11). 15

Sandeep Kesarwani v. State of U.P. and others

2014(2) ADJ 442 (DB) · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2198 M/s Rubi Ice Factory v. Dakshinanchal Vidyut Vitaran Nigam Ltd. & Another	Respondent	Followed	In a theft-of-electricity case an assessment under Section 126 of the Electricity Act, 2003 must be made even where an FIR under Section 135 is lodged and the trial is pending; unauthorised use of electricity is the genus and Section 135 theft a species, and the Special Court determines the civil liability, with further action under Section 154(6).	Followed judgment of 9.3.2017
SCJ-2636 Sanjay Singh v. State of U.P. & Others	Respondent	Followed	Theft under Section 135 is a species of the 'unauthorised use of electricity' under Section 126; assessment under Section 126 is to be made even where an FIR under Section 135 is lodged and trial is pending, the Special Court determining civil liability with further action under Section 154(6).	The Bench reproduced the two relevant issues and the Division Bench's reasoning and answers, and adopted them to reject the petitioner's contention. p. 5-6

Sandeep Kesarwani v. State of U.P. and others

Writ-C No. 69101 of 2013 (Allahabad HC, DB), decided 11.02.2014 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2224 Hasimuddin v. State of U.P. & 5 Others	Court	Relied on	Even where an FIR under Section 135 (theft) is lodged, an assessment under Section 126 can be made; Sections 126 and 135 must be interpreted harmoniously to give effect to the object of the Act, and no Apex Court ratio precludes a Section 126 assessment in theft cases.	Relied on ¶ 7
SCJ-3293 Vishal Chawla v. Consumer Grievance Redressal Forum, Purvanchal Vidyut Vitran Nigam Ltd. & Another	Respondent	Referred	Cited by the licensee. The order sets out no holding from that decision, and this Court did not apply it.	

Sanjay Singh v. State of U.P. and others

Writ-C No. 5519 of 2017 (Allahabad HC, DB), decided 09.02.2017 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2224 Hasimuddin v. State of U.P. & 5 Others	Court	Relied on	Even where an FIR is under Section 135, assessment is carried out under Section 126 and the Special Court finally determines civil liability (Section 154(6)); the remedy is a Section 127 appeal, and the High Court declines Article 226 interference when that appeal is available.	Relied on ¶ 8

Sardar Hasan Siddique v. State Transport Appellate Tribunal

AIR 1986 All 132 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.	Court	Relied on	A tribunal of limited jurisdiction cannot derive jurisdiction apart from the statute; no consent can confer it, and any decision by such a tribunal without jurisdiction is a nullity.	Relied on. para 25

Satya Pal v. State of U.P. and others

2000 Cr.L.J. 569 · Allahabad High Court (Full Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-102 Pawan Kumar Laur v. State of U.P. & Others	Court	Followed	Same standard as above (earlier Full Bench).	Followed.
SCJ-3081 Pawan Kumar Laur v. State of U.P. and others	Court	Followed	Same FIR-interference standard as Ajit Singh @ Muraha (earlier Full Bench).	Followed as the earlier Full Bench view reiterated in Ajit Singh @ Muraha.

Seema Mansoor v. U.P. Power Corporation Limited and others

2015 (1) ALJ 44 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3245 M/S Yash Footwear And Another v. State of U.P. And 3 Others	Court	Followed	As quoted from paragraph 16: the licensee is obliged to supply on a proper application; every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Supply Code, 2005; an application cannot be refused for want of the landlord's consent; a lessee, tenant or occupier who submits an indemnity bond cannot be refused merely on that ground.	

Sharda Oil Industries Pvt. Ltd., Nunaihi v. Appellate Authority/Superintending Engineer, U.P. State Electricity Board and Another

1994 SCC OnLine All 359 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	

Sharvan Kumar Jain v. State of U.P. & 2 Others

Writ-C No. 25372 of 2015, decided on 4.5.2015 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3293 Vishal Chawla v. Consumer Grievance Redressal Forum, Purvanchal Vidyut Vitran Nigam Ltd. & Another	Respondent	Referred	Cited by the licensee as another Division Bench order taking a view similar to Bhupendra Singh. No separate holding is stated, and this Court did not apply it.	

Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. and another

2017 (3) AWC 3084 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2462 Shyami v. State of U.P.	7	Referred		
SCJ-2567 Vinod Singh v. State of U.P.	1	Referred		
SCJ-2583 Raja Ram Kushwaha v. State of U.P.	1	Referred		
SCJ-2628 Chaman Prakash v. State of U.P.	2	Referred	Without a final assessment after considering objections and giving an opportunity of hearing, the consumer cannot be compelled to deposit the provisional amount; notices founded only on the provisional assessment are unsustainable.	
SCJ-2649 Aram Singh v. State of U.P.	5-6	Referred		
SCJ-2652 Durvin Singh v. State of U.P.	Court	Referred		
SCJ-2718 Anwar Rais v. State of U.P.	1	Referred		

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3219 Amar Singh v. State of U.P. And 2 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.	
SCJ-3220 Srikant Mishra Alias Manoj v. State of U.P. & 2 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the amount of the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, notices demanding that amount are unsustainable (para 16).	
SCJ-3224 Sayeed Ahmad And Another v. State of U.P. And 3 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.	
SCJ-3225 Shareef Ahmad v. State of U.P. & 3 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the amount of the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, notices demanding that amount are unsustainable (para 16).	
SCJ-3226 Nadeem v. State of U.P. And 3 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.	
SCJ-3227 Musharraf v. State of U.P. And 2 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3228 Vinod Kumar Saroj v. Purvanchal Vidhyut Vitran Nigam Ltd. And 2 Others	Court	Followed	Without a final assessment after considering the objection and giving an opportunity of hearing, the consumer cannot be compelled to deposit the amount of the provisional assessment.	
SCJ-3230 Hans Raj Maurya And 2 Others v. State of U.P. And 4 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.	
SCJ-3234 Raisa Begum v. Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the amount of a provisional assessment; without a final assessment after considering the objection and giving opportunity of hearing, the consumer cannot be compelled to deposit any amount.	
SCJ-3236 Junaid Khan v. Paschimanchal Vidyut Vitran Khand And 4 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.	
SCJ-3246 Iqbal Ahmad v. State of U.P. & 2 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the amount of the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, notices demanding that amount are unsustainable (para 16).	
SCJ-3250 Iqbal Ahmad v. State of U.P. And 2 Others	Court	Followed	If there is no final assessment, the consumer cannot be compelled to deposit the amount of the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, notices demanding that amount are unsustainable (para 16).	

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3252 Smt. Kaisher Jahan v. Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others	Court	Followed	If there is no final assessment after considering the objection and giving the consumer an opportunity of hearing, the consumer cannot be compelled to deposit the provisional assessment, and demand notices founded on that course are unsustainable.	

Shwetanshu Kumar Ojha v. State of U.P. and 6 others

Writ-C No.35257 of 2022 (High Court of Allahabad) · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2215 Devpati Devi v. State of U.P. & 2 Others	Court	Referred	Earlier proceedings in which the Managing Director of Purvanchal Vidyut Vitran Nigam Ltd. appeared in person and gave an undertaking (Circular Letter dated 09.01.2023) that officials would strictly follow the U.P. Electricity Supply Code, 2005 in theft/unauthorized-use assessments, and that action would be taken against erring officials.	Referred order of 21.2.2024, paras 7-8

Somai v. U.P. Power Corporation Ltd.

Writ-C No. 47278 of 2010, judgment dated 3.3.2023 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3073 Mithai Lal v. U.P. Power Corporation Ltd. & Others	Petitioner	Relied on	Relied on by the petitioner, who prayed that this writ be disposed of in the same terms; the Court did not recite Somai's holding or say it was following that order.	
SCJ-3079 Ram Rang v. U.P. Power Corporation Ltd. & Others	Petitioner	Relied on	Relied on by the petitioner, who prayed that this writ be disposed of in the same terms; the Court did not recite Somai's holding or say it was following that order.	

State of U.P. v. Aditya Prasad Srivastava

2017 (2) ADJ 554 (DB) (LB) · Allahabad High Court (DB) (Lucknow Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Court	Referred	Bench decision cited in the same catena on proof of charges in a departmental inquiry; no separate holding extracted.	

State of U.P. v. Brij Bhushan Sharma

Writ Petition No. 474 (SB) of 2011 (Allahabad HC, DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-039 Kanpur Electricity Supply Co. Ltd. & Anr. v. U.P. Electricity Regulatory Commission & Ors.	Court	Referred	The practice of the State filing frivolous writ petitions challenging tribunal orders is deprecated.	Referred to the same effect in imposing costs. 8

State of U.P. v. Kishori Lal

2018 (9) ADJ 397 (DB) (LB) · Allahabad High Court (DB) (Lucknow Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-548 Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others	Court	Referred	Bench decision cited in the same catena on the establishment's burden in a departmental inquiry; no separate holding extracted.	

State of U.P. v. Suresh Kumar

Writ Petition No. 506 (S/B) of 2011 (Allahabad HC, DB) · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-039 Kanpur Electricity Supply Co. Ltd. & Anr. v. U.P. Electricity Regulatory Commission & Ors.	Court	Referred	The State and its instrumentalities should refrain from filing frivolous petitions that waste the Court's time.	Referred to deprecate the licensee's frivolous writ petition. 7

Tehri Girders Ltd. & Anr. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Civil Misc. Writ Petition No. 38 of 2009, decided 15 October 2009 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1979 M/S K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.	Court	Followed	Failure to furnish additional security does not amount to arrears; additional security is an advance payment of charges, not money due, and its non-furnishing entails only possible disconnection.	Applied to the identical issue; the Court found no reason to take a different view and held the denial of rebate illegal. 24.2.2011

Torrent Power Ltd. v. State of U.P.

Civil Misc. Writ Petition No. 41139 of 2012, decided 4-12-2013 (Allahabad HC) · Allahabad High Court (Single Judge)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-159 Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr.	Petitioner	Followed	A Permanent Lok Adalat can entertain a compoundable-offence electricity dispute for conciliation, but on failure of conciliation cannot decide it on merits under s.22-C(8), because that provision ousts adjudicatory jurisdiction over any dispute relating to an offence irrespective of compoundability.	Followed, the Court being in full agreement. 7, 11

U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003604 of 2008)

Writ-C No. 1003604 of 2008, decided 21.03.2023 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-490 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-490 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-491 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-491 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-492 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-492 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-493 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-493 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-494 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.
SCJ-494 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.

U.P. Power Corporation Ltd. v. Ombudsmen and 2 others

Writ-C No. 1003603 of 2008, decided 21.03.2023 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-490 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	Quoted at paras 12–16 and followed; this petition allowed in terms of that order.
SCJ-491 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	Quoted at paras 12–16 and followed; this petition allowed in terms of that order.
SCJ-492 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	Quoted at paras 12–16 and followed; this petition allowed in terms of that order.
SCJ-493 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	Quoted at paras 12–16 and followed; this petition allowed in terms of that order.

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-494 U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others	Court	Followed	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	Quoted at paras 12–16 and followed; this petition allowed in terms of that order.

Varun Kumar Yadav v. State of U.P. & Others

2025 (7) ADJ 710 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-278 Satish Kumar Bharti alias Chhotu v. State of U.P. & 2 Others	Petitioner	Followed	The 24-hour lodging requirement for a theft complaint is mandatory; a thing required to be done in a particular manner is void if done otherwise.	Followed as the coordinate-Bench authority on which the quashing rests, despite a pending SLP against it. 6, 8, 10-12

Vijay Pal Singh & Another v. Dakshinanchal Vidyut Vitran Nigam Ltd & others

Writ - C No. 60987 of 2005, 29.3.2010 · Allahabad High Court (DB)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-678 M/S Sri Dauji Cold Storage Pvt Ltd And Another v. Dakshinanchal Vidyut Vitran Nigam Ltd And Others	Court	Followed	Unamended Code Clause 8.2(iv) assessing theft at three times the tariff was contrary to Section 126(6) (1.5 times) and ultra vires by Section 174; the petitioner was directed to pay 1.5 times the tariff applicable on the checking date. The effect of the 15.6.2007 amendment of s.126(6) to twice, without a matching Code amendment, was left open.	Followed. Long extract quoted. Licensee's counsel could not dispute the statutory provisions already considered in this decision. The 29.3.2008 three-times demand was quashed on that law. unnumbered order

Vikas Yadav v. State of U.P. and Another

Writ No. 34804 of 2019 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3282 Vikas Yadav v. State of U.P. and 2 Others	Court	Applied	If objections are filed, the Executive Engineer shall consider and decide them by a speaking order, most expeditiously, preferably within a month; any recovery shall abide that decision.	

Vinod Kumar Agarwal v. State of U.P. & Others

Writ-C No. 24772 of 2012, decided 10 July 2012 · Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1982 Ramanuj Tripathi v. State of U.P. & Others	Petitioner	Relied on	No recovery certificate is to be issued until a final assessment is made under Section 126; even absent objection, Section 126(3) requires the Executive Engineer to record service of the provisional assessment order and make a reasoned final assessment, and the Managing Director, UPPCL was directed (order dated 30.6.2012) to withdraw recoveries issued without final assessment.	Reproduced at para 4 and relied on for the mandatory-final-assessment-before-recovery rule. 4
SCJ-1985 Shareef Ahmad v. State of U.P. & Another	Court	Followed	No recovery certificate is to be issued until a final assessment is made in a theft case after a reasonable opportunity of hearing under sub-section (3) of Section 126 of the Electricity Act, 2003 (the Section 126(3) order to be passed within thirty days of service of the provisional assessment); recoveries already issued without a final assessment are to be withdrawn - the Court reproducing the Chairman-cum-Managing Director, UPPCL's compliance order dated 30 June 2012.	Reproduced and applied to stay recovery pursuant to the impugned demand notice at the interim stage. order of 25.8.2015

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3166 Som Pal Singh v. State of U.P. & 3 Others	Petitioner	Relied on	No recovery certificate is to be issued until a final assessment is made under section 126; even absent objection, section 126(3) requires the Executive Engineer to record service of the provisional assessment and make a reasoned final assessment. The Managing Director, UPPCL's compliance order of 30.6.2012 directed withdrawal of recoveries issued without a final assessment.	

Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.

(2003) 3 Company Law Journal 328 (Alld.) · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-055 M/S Hind Industries Limited v. State of U.P. & Ors.	Court	Relied on	Payment of interest is a necessary corollary to the retention of an amount; it is neither penal nor confiscatory.	Relied on to justify charging interest on the long-evaded assessed sum. unnumbered order
SCJ-1266 M/s Hind Industries Limited v. State of U.P. & Others	Court	Relied on	Payment of interest is a necessary corollary to the retention of the amount; it is neither penal nor confiscatory.	Relied on for the proposition that interest follows retention of the assessed amount order of 8.10.2013 (quoting the Single Judge's order of 12.10.2011)

Writ Petition No. 12748 of 2017 (decided 12 April 2017)

Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1647 Nagendra Singh v. State of U.P. (theft demand; billing officer and Clause 6.14)	1	Referred		

Writ Petition No. 7624 of 2021 (M/s Bismillah Rice Mill), decided on 25.03.2021

Allahabad High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3235 M/S Bismillah Rice Mill Through Its Partner Shakeel Ahmad v. Madhyanchal Vidyut Nigam Limited	Court	Followed	An external device in the PT output circuit is theft under Clause 8.1 of the U.P. Electricity Supply Code, 2005, not a defective-meter case under Clause 5.6; the 28.01.2021 provisional notice was served on 02.02.2021 and no reply was filed, yet one more opportunity under Clause 8.1(a) and (b) was given.	

Writ-C No. 14162 of 2023

Writ-C No. 14162 of 2023 · High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3446 Lalbabu and Another v. State of U.P. and 3 Others	2-3	Referred		
SCJ-3448 Munna Prasad Soni v. State of U.P.	2	followed	Final assessment and consequential recovery are quashed where Clause 6.8 procedure is not followed, with liberty to proceed afresh in accordance with law and a direction to communicate the order to the DISCOM Managing Director.	

Zeeshan (Jeeshan) v. State of U.P. (Civil Misc. Writ Petition No. 7074 of 2009)

High Court of Judicature at Allahabad

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2851 Pappu v. State of U.P. & Others	Court	Referred	Jeeshan's earlier writ, disposed of on 09.02.2009, permitting his objection/representation against the assessment to be decided only on his depositing 50% of the amount under citation within one month (the order-sheet records the number once as 'of 2001' and elsewhere as 'of 2009').	Referred to and treated as the condition the assessing authority defied; the Court found Jeeshan guilty of concealing this order and held that his representation was not to be decided until the 50% deposit was made. order of 06.11.2009

Other High Courts 16 authorities · 17 citations

M/s. Classic Color Lab v. Assistant Engineer and Others (Kerala HC)

2014 (3) KLT 57 · Kerala High Court (Division Bench)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Followed	Following Seetaram Rice Mill, an assessment under s.126(6) for unauthorised use (there, industrial-tariff electricity misused for commercial purposes) must be at the rate applicable to the higher-tariff category actually used, not the consumer's nominal category; a purposive (not textual) interpretation of s.126 is required.	Approved as correctly decided by the Kerala High Court below (and effectively reaffirmed by the Supreme Court), while the Kerala High Court's later attempt in the present case to carve out a fixed-charges-only exception for 'mere overdrawal' cases was rejected as inconsistent with the same reasoning.

M/s JMD Alloys Limited v. Bihar State Electricity Board

(referenced via Modern Rice Mill) · Patna High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Petitioner	Followed	Sending a disputed Secure Meter for testing to its manufacturer's own accredited laboratory is likely to create a strong bias in favour of the supplier/manufacturer, even if the laboratory is accredited.	Followed to hold that the manufacturer's testing report cannot be relied upon as an 'independent laboratory' report. para 49
SCJ-071 M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.	Court	Followed	Testing of a Secure Meter by its own manufacturer is likely to create a strong bias in favour of the supplier/manufacturer.	Followed (via Modern Rice Mill). para 33

Smt. Minakshi Patra v. Secretary Irrigation and Power, Govt. of Orissa & others

AIR 1999 Orissa 137 · Orissa High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3170 M/S Sahara India Commercial Corporation Ltd. v. Executive Engineer Electricity Urban Distribution & 4 Others	Petitioner	Referred	Cited for the contention that, on an application under section 80(2) CPC, the court below was required to look into urgency and could not have entered into the merits of the relief.	

Bimal Kumar Gupta v. Special Police Establishment Lokayukt

2001 (1) MPHT 330; (2001) 3 JLJ 2 · Madhya Pradesh High Court (Single Judge)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-091 Naresh Kumar Madan v. State of Madhya Pradesh	Petitioner	Overruled	Employees of the Madhya Pradesh State Electricity Board are not 'public servants' for purposes of prosecution under the Prevention of Corruption Act, since s.81 of the 1948 Act only deems them public servants under IPC s.21, and a 'deemed provision' cannot extend to another statute (relying on State of Maharashtra v. Laljit Rajashi Shah).	Overruled — held not to lay down the correct law; the 1988 Act's own broader 'public servant' definition (s.2(1)(c)(iii)) independently captures Board employees regardless of the 1948 Act's IPC-specific deeming fiction.

Col. R.K. Nayar (Retd.) v. BSES Rajdhani Power Ltd. & Ors.

ILR (2007) II Delhi 769 · Delhi High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	

Harvinder Motors v. B.S.E.S. Rajdhani Power Ltd.

2006 SCC OnLine Del 1404 · Delhi High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	

Hotel Adityaz Ltd. v. M.P. Kshetra Vidyut Vitran Co. Ltd.

AIR 2016 (NOC) 39 (M.P.) · Madhya Pradesh High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-042 West Bengal State Electricity Distribution Co. Ltd. (WBSEDCL) v. M/s Orion Metal Pvt. Ltd.	Respondent	Distinguished	Theft cases fall only under Section 135, and Section 126 has no application to them.	Distinguished — the view that Section 126 has no application to theft cases was not accepted. para 12

Jagdish Narayan v. North Delhi Power Limited & Anr.

ILR (2007) II Delhi 957 · Delhi High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3309 Sujauddin @ Pappu v. The Appellate Committee, Saharanpur Division and 2 Others	Petitioner	Distinguished	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	

JMD Alloys Ltd.

Patna High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-161 Rituraj v. State of U.P. & Others	Court	Referred	Sending a meter for testing to the accredited laboratory of its manufacturer/supplier (Secure Meters Ltd.) is likely to create a strong bias on the part of the supplier/manufacturer.	Noticed within the quoted Modern Rice Mill extract in support of the manufacturer-bias point. 5

Kirpa Singh v. Ajaypal Singh

1928 ILR 10 Lahore 165 (FB) · Lahore High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	Right of appeal governed by law at the date of institution of the suit, not at the date of decision or of filing the appeal.	Referred; approved in Garikapati. 17

Madhur Garg v. North Delhi Power Ltd.

129 (2006) DLT 2013 · High Court of Delhi

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2201 M/s Torrent Power Ltd. v. State of U.P. & 3 Others	Petitioner	Distinguished	Cited by the petitioner-franchisee in support of denying a fresh connection until previous electricity dues on the premises are cleared.	Found inapplicable / distinguished on the facts ¶ 12, 17

Modern Terry Towels Ltd. v. Gujarat Electricity Board

AIR 2003 Guj 63 · Gujarat High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-273 M/S Kamakhya Steels Pvt. Ltd. v. State of U.P. & Others	Petitioner	Referred	A broken seal, without more, does not establish theft of electricity.	Cited in the consumer's objections (reproduced by the Court at judgment para 16 / objection para 28) together with Chapter VIII of the Supply Code, 2005, for the proposition that a broken seal does not establish theft. The Court did not independently name-apply the case, but its own holding — that a checking-report 'possibility of theft' from tampered CT/PT seals, without meter tampering or bypass, cannot without reasons be converted into a finding of actual theft — is to the same effect. (The judgment's OCR reads 'Model Terry Towens' / 'Gujrat'.) 16

Nana bin Aba v. Skeku bin Andu

(1908) ILR 32 Bom 337 · Bombay High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	Followed Colonial Sugar Refining on the vested, substantive nature of the right of appeal.	Referred within the line of authority. 17

Punjab State Electricity Board v. Guru Nanak Agriculture Engineering Works

AIR 2007 P&H 57 · Punjab and Haryana High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-207 Executive Engineer, Distribution Division & Anr. v. Pacific Promoter	Respondent	Doubted	Relied on by the plaintiff for the proposition that the civil court's jurisdiction is not barred in such an electricity dispute.	Respectfully disagreed with; the Court held the civil court's jurisdiction is barred by s.145. 10-11

Sk. Jafar Ali v. West Bengal State Electricity Distribution Company Limited

AIR 2010 Cal 84 · Calcutta High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Distinguished	The phrase 'applicable for the relevant category of services' in s.126(6) should be construed as the rate applicable to the category the consumer belongs to, not the higher category of the unauthorised use.	Disagreed with by the Kerala High Court below (a disagreement left undisturbed since the Supreme Court's review was confined to para 31(vi)).

Tirumala Modern Rice Mill v. Transmission Corporation of A.P. Ltd. (AP Transco)

AIR 2007 AP 265 · Andhra Pradesh High Court

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-111 Sandeep Kesarwani v. State of U.P. & 3 Others	Petitioner	Distinguished	Parts XIV/XV of the Electricity Act do not contemplate provisional assessment of energy pilfered in theft cases; where a consumer accepts and deposits a provisional assessment without demur, no further liability/action may be taken.	Held not to lay down the proposition that s.126 assessment is inapplicable to theft cases; distinguished as not supporting the petitioner's submission.

Statutes, Tribunals, Treatises & Other 19 authorities · 20 citations

Shri Bholu v. State of U.P.

Writ-C No. 21927 of 2016, order dated 15.7.2016

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1507 Jeetu @ Jeet Singh v. State of U.P.	3	Referred		

Smt. Kudusia Begum v. State of U.P.

Writ-C No. 27451 of 2021, decided on 23.10.2021

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2802 Smt. Kudusia Begum v. State of U.P.	1-2	followed		

Aaysha Begum v. Purvanchal Vidhut Vitrana Nigam Ltd.

Writ-C No. 26778 of 2023, decided on 10.08.2023

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3743 Phool Singh v. Purvanchal Vidyut Vitran Nigam Ltd.	6	Referred		

Application U/S 482 No. 11139 of 2023

Application U/S 482 No. 11139 of 2023, order dated 09.11.2023

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3386 Anoop Kumar v. State of U.P. and Another	Saurabh Lavania, J.	followed		

Ashok Kumar and Others v. State of U.P. and Others

2008 (6) ADJ 607

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2315 Avanish Singh v. State of U.P.	4-5, 7	Referred		

Chandler v. D.P.P.

[1964] A.C. 763 · House of Lords

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.	Court	Relied on	Side notes/marginal headings cannot be used as an aid to statutory construction; they are mere catchwords, not enacted as part of the Act.	Relied on for the marginal-heading principle applied to Clause 5.6's 'Defective Meters' heading. para 40

Colonial Sugar Refining Co. Ltd. v. Irving

(1905) AC 369 · Privy Council

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	The right of appeal is a substantive right that vests on the initiation of proceedings; only procedural statutes may be retrospective, not those affecting the right of appeal.	Referred as the foundational statement of the principle. 17

Dakshin Haryana Bijli Vitran Nigam Ltd. & Ors. v. Megh Raj

Revision Petition No. 3144 of 2007, decided 11.9.2008 · National Consumer Disputes Redressal Commission

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-003 Abhinav Seva Sansthan Mahavidyalaya v. U.P. Power Corporation Nigam Ltd. & Ors.	Petitioner	Distinguished	The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.	Distinguished / confined — read as applicable only to compounding under s.152(3), where a prosecution is pending; it does not govern s.152(2) compounding before any prosecution is instituted. 10, 15-18

Delhi Cloth & General Mills Co. Ltd. v. Income Tax Commissioner, Delhi

ILR 9 Lahore 284 · Privy Council

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-008 Aruna Bhargava v. PuVVNL & Another	Court	Referred	Only a statute dealing with procedure may have retrospective effect; a statute conferring substantive rights, including the right of appeal, does not.	Referred within the line of authority. 17

Krishna Chandra Mishra v. State of U.P. and another

Section 482 Petition No. 807/2021, order dated 19.02.2021

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2557 Krishna Chandra Mishra v. State of U.P. & Anr.	1	Referred		

McEldowney v. Forde

(1971) AC 632 · House of Lords

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)	Court	Referred	In reviewing subordinate legislation's validity, a court's task is threefold: determine the meaning of the enabling words, determine the meaning of the subordinate legislation, and decide whether the latter complies with the former.	Cited (Lord Diplock) for the analytical framework of ultra vires review.

Meenu Gupta v. State of U.P.

Writ-C No. 3872 of 2018, decided on 31.1.2018

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2014 Ram Chandra v. State of U.P.	petitioner	Referred		
SCJ-2015 Gulab Keshari v. State of U.P.	petitioner	Referred		

Misc. Petition No. 31705 of 2009 (Allahabad High Court)

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-766 Dinesh Sharma v. State of U.P.	1	Referred		

North Delhi Power Ltd. (NDPL) v. DERC

2007 ELR (APTEL) 193 · Appellate Tribunal for Electricity

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission	Court	Relied on	Restricting a utility's claim by disallowing reasonably anticipated expenditure and deferring it to the truing-up exercise is not prudence; truing up only fills the gap between actual and anticipated expenses.	Relied on and agreed with. 52-53

S.N. Mukherji v. Union of India

AIR 1990 SC 1984

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-641 M/s Tej International Pvt. Ltd. v. U.P. Power Corporation	Shishir Kumar, J.	Referred		

Seema Mansoor v. U.P. Power Corporation and 3 Others

Writ C No. 28295 of 2014, order dated 26.05.2014

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-3392 Vinod Porwal v. State of Uttar Pradesh and 2 Others	petitioner and the Court	Referred		

Shishir Jain

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-2607 Nijamuddin v. State of U.P.	1	Referred		

State Load Despatch Centre v. GERC

2015 SCC OnLine APTEL 50 · Appellate Tribunal for Electricity

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission	Court	Referred	'Truing up' means the adjustment of actual amounts incurred against the estimated/projected amounts determined under the ARR.	Referred to define truing up. 52

Uttar Pradesh Power Corporation Ltd. v. Anis Ahmad

2013 (8) SCC 419

CITED IN	BY	TREATMENT	PROPOSITION (AS STATED IN THE JUDGMENT)	HOW TREATED
SCJ-1886 Executive Engineer, Electricity Distribution Division v. District Consumer Forum	4	Referred		